

SOLICITATION, OFFER, AND AWARD

1. This Contract is a Rated Order under the Defense Priorities and Allocations System (DPAS) - Code of Federal Regulations - at 15 CFR 700.

RATING

PAGE OF PAGES

2. CONTRACT NUMBER	3. SOLICITATION NUMBER	4. TYPE OF SOLICITATION ☐ SEALED BID (IFB) INVITATION FOR BID ☐ NEGOTIATED (RFP) REQUEST FOR PROPOSAL	5. DATE ISSUED	6. REQUISITION/PURCHASE NUMBER
7. ISSUED BY	CODE	8. ADDRESS OFFER TO (If other than item 7)		

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".**SOLICITATION**

9. Sealed offers in original and _____ copies for furnishings the supplies or services in the Schedule will be received at the place specified in item 8, or if hand carried, in the depository located in _____ until _____ local time _____ (Hour) _____ (Date)

CAUTION - LATE Submissions, Modifications, and Withdrawals: See Section L, Provision Number 52.214-7 or 52.215-1. All offers are subject to all terms and conditions contained in this solicitation.

10. FOR INFORMATION CALL: 	A. NAME	B. TELEPHONE (NO COLLECT CALLS)		C. EMAIL ADDRESS
		AREA CODE	NUMBER	EXTENSION

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	B	SUPPLIES OR SERVICES AND PRICES/COSTS				PART III - LIST OF DOCUMENTS, EXHIBITS AND OTHER ATTACHMENTS	
	C	DESCRIPTION/SPECIFICATIONS/WORK STATEMENT			J	LIST OF ATTACHMENTS	
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OFFER (Must be fully completed by offeror)

NOTE: Item 12 does not apply if the solicitation includes the provisions at 52.214-16, Minimum Bid Acceptance Period.

12. In compliance with the above, the undersigned agrees, if this offer is accepted within _____ calendar days (60 calendar days unless a different period is inserted by the offeror) from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the set opposite each item, delivered at the designated point(s), within the time specified in the schedule.

13. DISCOUNT FOR PROMPT PAYMENT (See Section I, Clause Number 52.232-8) 	10 CALENDAR DAYS (%)	20 CALENDAR DAYS (%)	30 CALENDAR DAYS (%)	CALENDAR DAYS (%)
14. ACKNOWLEDGMENT OF AMENDMENTS (The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated):	AMENDMENT NUMBER	DATE	AMENDMENT NUMBER	DATE
15A. NAME AND ADDRESS OF OFFEROR	CODE	FACILITY	16. NAME AND THE TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)	
15B. TELEPHONE NUMBER		☐ 15C. CHECK IF REMITTANCE ADDRESS IS DIFFERENT FROM ABOVE - ENTER SUCH ADDRESS IN SCHEDULE.	17. SIGNATURE	18. OFFER DATE
AREA CODE	NUMBER EXTENSION			

AWARD (To be completed by Government)

19. ACCEPTED AS TO ITEMS NUMBERED	20. AMOUNT	21. ACCOUNTING AND APPROPRIATION	
22. AUTHORITY FOR USING OTHER THAN FULL OPEN COMPETITION UNDER THE UNITED STATES CODE AT: ☐ 10 U.S.C. 3204(a) ☐ 41 U.S.C. 3304(a) ()		23. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified) 	ITEM
24. ADMINISTERED BY (If other than Item 7)		25. PAYMENT WILL BE MADE BY CODE	
26. NAME OF CONTRACTING OFFICER (Type or print)		27. UNITED STATES OF AMERICA (Signature of Contracting Officer)	
		28. AWARD DATE	

IMPORTANT - Award will be made on this Form, or on Standard Form 26, or by other authorized official written notice.

AUTHORIZED FOR LOCAL REPRODUCTION
Previous edition is unusable

STANDARD FORM 33 (REV. 12/2022)
Prescribed by GSA - FAR (48 CFR) 53.214 (c)

Section A - Solicitation/Contract Form

Expeditionary Combat Skills (ECS) Instructor Support Services

NOTE: All clauses incorporated by reference and full text in the basic IDIQ contract apply to this Task Order, as applicable, in addition to those added here.

This RFP is a follow-on to task order N0018924F3071. The current incumbent performing these services is RMGS, Inc.

Section B - Supplies or Services & Prices or Costs

Additional Information/Notes

The Government intends to unilaterally deobligate any unliquidated obligations 90 days after each period of performance. Prior to doing so, the Contracting Officer (or Administrative Contracting Officer) will notify the contractor of the intended amount of deobligation and ask the contractor to confirm within one week that all invoices for the completed period of performance have been submitted and processed for payment (with the exception of any invoice for rate adjustment upon receipt of DCAA approved final rates for any cost-type CLINs or SLINs). Upon confirmation that all invoices have been submitted and processed for payment, or upon the contractor's failure to respond to the PCO/ACOs notification of intent to deobligate, the Contracting Officer or Administrative Contracting Officer will unilaterally deobligate the potential ULOs by reducing the funded amount to an amount equal to the contractors invoiced/paid amount for that contract period of performance.

Note: Reduction of cost-reimbursement CLINs or SLINs in accordance with the above DOES NOT change either party's obligations under a Final Invoice submitted upon DCMA establishing final rates for each CLIN and or SLIN.

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
5000	Mobilization Period in accordance with the Performance Work Statement Pricing Arrangement: Firm Fixed Price	1.5	Months		
5001	Base Period in accordance with the Performance Work Statement. Pricing Arrangement: Firm Fixed Price	10.5	Months		
Option Line Item 5002	Option Year I in accordance with the Performance Work Statement. Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 5003	Option Year II in accordance with the Performance Work Statement. Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 5004	Option Year III in accordance with the Performance Work Statement. Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 5005	Option Year IV in accordance with the Performance Work Statement. Pricing Arrangement: Firm Fixed Price	12	Months		
7001	Base Period Travel	1	Job		

	Pricing Arrangement: Cost No Fee				
Option Line Item 7002	Option Year I Travel Pricing Arrangement: Cost No Fee	1	Job		
Option Line Item 7003	Option Year II Travel Pricing Arrangement: Cost No Fee	1	Job		
Option Line Item 7004	Option Year III Travel Pricing Arrangement: Cost No Fee	1	Job		
Option Line Item 7005	Option Year IV Travel Pricing Arrangement: Cost No Fee	1	Job		

Section C - Description/Specifications/Statement of Work

See attachment number one (1), Performance Work Statement (PWS) in Section J.

Requirements

Follow-on to N0018924F3071 for Expeditionary Combat Skills (ECS) Instructor Support Services

Additional Regulation or Supplemental Clauses Incorporated by Full Text

SUPTXT242-9405(6-20) EXPEDITING CONTRACT CLOSEOUT

(May 2025)

THE FOLLOWING NAVSUP LOCAL TEXT IS HEREBY MADE PART OF THE STATEMENT OF WORK /PERFORMANCE WORK STATEMENT.

EXPEDITING CONTRACT CLOSEOUT

(a) As part of the negotiated fixed price or total estimated amount of this contract, both the Government and the Contractor have agreed to waive any entitlement that otherwise might accrue to either party in any residual dollar amount of \$1,000 or less at the time of final contract closeout. The term "residual dollar amount" shall include all money that would otherwise be owed to either party at the end of the contract, except that, amounts connected in any way with taxation, allegations of fraud and/or antitrust violations shall be excluded. For purposes of determining residual dollar amounts, offsets of money owed by one party against money that would otherwise be paid by that party may be considered to the extent permitted by law.

(b) This agreement to waive entitlement to residual dollar amounts has been considered by both parties. It is agreed that the administrative costs for either party associated with collecting such small dollar amounts could exceed the amount to be recovered.

243-9400(1-92) SUPTXT243-9400(1-92) AUTHORIZED CHANGES ONLY BY THE CONTRACTING OFFICER

(Jan 2024)

AUTHORIZED CHANGES ONLY BY THE CONTRACTING OFFICER

TO BE FILLED IN AT TIME OF AWARD

(a) Except as specified in paragraph (b) below, no order, statement, or conduct of Government personnel who visit the Contractor's facilities or in any other manner communicate with Contractor personnel during the performance of this contract shall constitute a change under the "Changes" clause of this contract.

(b) The Contractor shall not comply with any order, direction or request of Government personnel unless it is issued in writing and signed by the Contracting Officer, or is pursuant to specific authority otherwise included as a part of this contract.

(c) The Contracting Officer is the only person authorized to approve changes in any of the requirements of this contract and notwithstanding provisions contained elsewhere in this contract, the said authority remains solely with the Contracting Officer. In the event the Contractor effects any change at the direction of any person other than the Contracting Officer, the change will be considered to have been made without authority and no adjustment will be made in the contract price to cover any increase in charges incurred as a result thereof. The address and telephone number of the Contracting Officer is:

NAME:

ADDRESS:

TELEPHONE:

Section D - Packaging and Marking

All deliverables shall be packaged and marked in accordance with (IAW) best commercial practices.

Section E - Inspection and Acceptance

Quality Assurance Surveillance Plan (QASP)

Expeditionary Combat Skills Instructor

Center for Security Forces

1.0 PURPOSE

This Quality Assurance Surveillance Plan (QASP) is a Government developed and applied document used to make sure that systematic quality assurance methods are used in the administration of the Performance Based Service Contract (PBSC) standards included in this contract. The intent is to ensure that the Contractor performs in accordance with performance metrics set forth in the contract documents, that the Government receives the quality of services called for in the contract and that the Government only pays for the acceptable level of services received.

2.0 AUTHORITY

Authority for issuance of this QASP is provided under FAR 52-212-4(a), Inspection/Acceptance, which provides for inspections and acceptance of the articles, services, and documentation called for in the contract to be accomplished by the Procuring Contracting Officer (PCO) or his or hers duly authorized representative.

3.0 SCOPE

The Contractor, and not the Government, is responsible for management and quality control actions necessary to meet quality standards set forth by the contract. The QASP is put in place to provide Government surveillance oversight of the Contractor's quality control efforts to assure that they are timely, effective and are delivering the results specified in the contract or task order. The QASP is not intended to duplicate the Contractor's Management Plan.

4.0 GOVERNMENT RESOURCES

The following definitions for Government resources are applicable to this plan:

Procuring Contract Officer (PCO) - A person duly appointed with the authority to enter into, administer, or terminate contracts and make related determinations and findings on behalf of the Government.

Contracting Officer's Representative (COR) - An individual designated in writing by the PCO to act as his authorized representative to assist in administering a contract. The source and authority for a COR is the PCO. COR limitations are contained in the written letter of appointment.

Technical Assistant (TA) - An individual designated in writing by the COR to act as his authorized representative to assist in administering a contract. TA limitations are contained in the written letter of appointment.

5.0 RESPONSIBILITIES

The Contractor, and not the Government, is responsible for management and quality control actions necessary to meet quality standards set forth by the contract. The QASP is put in place to provide Government surveillance oversight of the Contractor's quality control efforts to assure that they are timely, effective and are delivering the results specified in the contract. The QASP is not a part of the contract nor is it intended to duplicate the Contractor's Management Plan.

Procuring Contract Officer (PCO) - The PCO ensures performance of all necessary actions for effective contracting compliance with the terms of the contract and safeguards the interests of the United States in the contractual relationship. It is the PCO that assures the contractor receives impartial, fair and equitable treatment under the contract. The PCO is ultimately responsible for the final determination of the adequacy of the contractor's performance.

Contracting Officer's Representative (COR) - The COR is responsible for technical administration of the project and assures proper Government surveillance of the contractor's performance. The COR is not empowered to make any contractual commitments or to authorize any contractual changes on the Government's behalf. Any changes that the contractor deems may affect contract, price, terms, or conditions shall be referred to the Contracting Officer for action.

Technical Assistant (TA) - The TA serves as the front line technical assistant to the COR. The TA provides detailed oversight of the contractors' performance and reports monthly his or her findings to the COR in a timely complete and impartial fashion. While the TA may serve as a direct conduit between the contractor and the COR, the TA is not empowered to provide technical direction or clarification to the Contractor.

6.0 METHODS OF QA SURVEILLANCE

The below listed methods of surveillance shall be used in the administration of this QASP Matrix (Attachment 1) which describes the methods of surveillance that may be used to monitor the services and deliverables to be provided under the contract.

Customer Feedback / Course Critiques - Customer feedback may be obtained from the results of formal customer satisfaction surveys, course critiques or from random customer complaints. Customer complaints /critiques, to be considered valid, must set forth clearly and in writing the detailed nature of the compliant /critique and must be forwarded to the contractor.

Instructor Audits - The Government, through the COR, TA, and training site representatives, will conduct periodic audits on an unscheduled and random basis to ensure that the contractor complies with the Training Course Control Documents (TCCDs) and demonstrates technical and instructional proficiency per the PWS. These audits may take place in the classroom or at any training facility where the contractor's instruction is taking place.

TA Monthly Report - TAs shall submit a monthly report based on the contractor's submittal of their required Monthly Status Report (MSR) to their respective COR. The TA will verify all information submitted by the contractor in their MSR and make relevant comments based on close observations of the contractor's performance during the month. The COR shall keep the PCO informed of all significant contractor performance issues, and execute the prescribed Procedures to be taken when performance standards are not met, in accordance with the QASP Matrix. The COR shall keep all contractor MSRs and TA monthly reports in the Quality Assurance (QA) file.

Random Checks/Inspections on Completion of Workload Taskings - Random checks will be conducted to ensure compliance with the contract and standard operating procedures. TAs/COR/and CENSECFOR Assessment Teams will conduct random monitoring.

Instructor Training Jacket (ITJ) Reviews - The Government, through the COR, TA, and training site representatives, shall conduct scheduled and unscheduled, random audits of ITJs. These audits will focus on the proper documentation of instructor prerequisites and certifications, and ensure that all certifications are maintained in a current status.

COR Assessment - The COR shall evaluate the timeliness, quality and accuracy of monthly reports and invoices. The COR will also assess success or failure related to the replacement of an instructor within the allotted timeframe.

Safety Reviews - The Government, through the COR, TA and training site representatives, will track the number of safety mishaps and near hit/miss incidences utilizing the contractor monthly reports and official site Training Safety Officer documentation.

7.0 IDENTIFIED QA SURVEILLANCE ITEMS

The PBSC items that have been identified for surveillance are also identified in the Performance Work Statement (PWS).

Additionally, the contractor's implementation of the clause at FAR 52.222-50, Combating Trafficking in Persons, will be a surveillance item. Non-compliance with the trafficking in persons requirements will be brought to the immediate attention of the contracting officer (see DFARS PGI 222.1703).

8.0 DOCUMENTATION

The TA shall maintain a complete QA file. The file will contain copies of all reports, evaluations, recommendations, and any actions related to the Government's performance of the QA function. All such records will be retained for the life of this contract. The COR shall forward these records to the PCO at termination or completion of the contract.

9.0 ANALYSIS OF CONTRACTOR PERFORMANCE

The analysis of contractor performance shall be conducted at the end of each month and serves to provide a summary of the contractor's performance to the PCO and the contractor. Overall performance is important in determining whether to increase, decrease or maintain the current level of surveillance and/or whether to initiate corrective action to bring the Contractor's work up to the standards of the specification.

10.0 PERFORMANCE EVALUATION MEETINGS

Performance Evaluation Meetings (PEM) will be held at the conclusion of any mobilization period. Thereafter, PEMs will be scheduled as often as necessary, at the discretion of the PCO. These meetings are to be used to evaluate contractor performance prior to development and submission of Contractor Performance Assessment Reporting System (CPARS) and to resolve minor problems and areas of concern in an effort to avoid disputes and claims. The minutes of these meetings will be recorded by the COR and signed by both the contractor and Government representatives. The COR will provide a copy of the minutes to the contractor.

11.0 INCENTIVES/DISINCENTIVES

The COR makes an annual report on Contractor Performance (CPARS or other annual report). The Contractor's failure to achieve satisfactory performance under the contract, reflected in the COR's annual report, may result in termination of the contract and may also result in the loss of future Government contracts. Additionally, the Contractor's failure to achieve satisfactory performance under the contract may also result in the non-exercise of available options.

In accordance with the inspection of services provision of the contract, the contractor will be incentivized to provide quality products/services in a timely manner since the Government can require the Contractor, at no additional cost, to replace or correct work that fails to meet contract requirements.

For each item that does not meet acceptable levels, the Government may issue a Contract Discrepancy Report (CDR). CDRs will be forwarded to the Contracting Officer with a copy sent to the Contractor. The Contractor must reply in writing within 5 days of receipt identifying how future occurrences of the problem will be prevented. Based upon the Contractor's past performance, severity of problem, and plan to solve the problem, the Contracting Officer will determine if any further action will be taken.

Deliverable or Service Requirement	Performance Standard	Method of Surveillance	Frequency	*Acceptable Quality Level (AQL)	Procedures to be taken when performance standards are not met
PWS Section 1-4, 4, and 5	All Instructors (Required Breadth of 57 Instructors) meet or exceed the requirements, qualifications, and certifications specified in the Performance Work Statement	ITJ Reviews/ Instructor Audits	Random	100% of instructors must meet qualifications within allotted days of employment < 10% Instructor turnover in any six (6) month period	Request corrective action from contractor in accordance with Quality Assurance Plan and/or request notification of extenuating circumstances, and/or COR reporting to Contractor Performance Assessment Reporting System (CPARS), and/or Reject contractor invoice and request new invoice that reflects decreased level of services delivered (Any costs associated with meeting this performance standard will be accomplished at no cost to the Government.)
Quality Instruction - effective delivery of course curriculum	Number of complaints by students or staff against contract instructors; submittal of positive or negative comments specific to contract instructors on student critiques; evaluation by Course Supervisor / TA	Customer Feedback / Student Course Critiques Instructor Audits	Random	1 Valid Complaint < 3 Negative comments from student critiques 1 Negative evaluation from CENSECFOR Staff	Request corrective action from contractor in accordance with Quality Assurance Plan and/or request notification of extenuating circumstances, and/or COR reporting to Contractor Performance Assessment Reporting System (CPARS)

Site Management PWS Section 1-5.2	Contractor shall designate a Site Lead and Alternate. Contractor shall provide names and phone numbers for Site Lead and Alternate to OIC, CENSECFOR COR, and ECS Training Officer/Technical Assistant within 15 days of contract award and within one (1) day whenever changes are made.	TA Reports /COR Assessment/ Random Checks	As Needed	< 2 days Overdue	Request corrective action from Contractor, inform PCO, document Contractor performance, and/or COR reporting in CPARS.
Replacement of Contractor Personnel PWS Section 3-1.7.1	Contractor shall provide a detailed replacement plan to the CENSECFOR COR and CENSECFOR OIC within 72 hours of instructor departure and the identified replacement instructor shall start performance within ten (10) working days. Any such replacement must occur without interrupting the class schedule and without additional expense to the Government.	TA Reports /COR Assessment/ Random Checks	As needed	100% Inspection	Request corrective action from contractor in accordance with Quality Assurance Plan and/or request notification of extenuating circumstances, and/or COR reporting to Contractor Performance Assessment Reporting System (CPARS), and/or Reject contractor invoice and request new invoice that reflects decreased level of services delivered

Support of safe training environment/ adherence to applicable instructions, policies, and procedures	Number of safety mishaps or near hit/miss incidents involving contract instructors. Documented instances of contract instructor failure to follow/ comply with applicable safety practices, policies and procedures. Number of mishaps avoided as a result of contract instructor action	TA Reports /Safety Reviews	Monthly	1 Safety mishap or near hit/miss per instructor during any 90-day period* 1 Documented instance of failure to follow applicable safety practices, policies, and procedures in a 30-day period* * Based on TA Reporting	Based on severity of event, could result in action ranging from supplemental training to disqualification of contract instructor COR reporting to Contractor Performance Assessment Reporting System (CPARS) Mishaps prevented will reflect favorably in CPARS
CUIT Requirements PWS Section 5.2-1	New contract Instructors who are hired prior to mobilization shall complete all requirements for certification in the lesson topic(s) assigned by the ECS Training Officer within the Mobilization period utilizing the CUIT process for the ECS COI. New replacement contract Instructors brought on post mobilization will be required to complete all requirements for certification in the lesson topic(s) assigned by the ECS Training Officer within 90 days of reporting to the Detachment and full qualification attained in their assigned phase within 9 Months.	TA Reports /COR Assessment	As needed	100% Inspection	Request immediate corrective action from contractor in accordance with Quality Assurance Plan and/or request notification of extenuating circumstances, and/or COR reporting to Contractor Performance Assessment Reporting System (CPARS), and/or Reject contractor invoice and request new invoice that reflects decreased level of services delivered
					Request immediate corrective action from contractor in accordance

CUIT Requirements PWS Section 5.2-1	Contractor shall maintain at least the minimum number of phase qualified Instructors throughout the duration of the contract: Phase 1 - 15 instructors, Phase 2 - 15 instructors, Phase 3 - 12 instructors, and Phase 4 - 15 instructors.	TA Reports /COR Assessment	As Needed	100% Inspection	with Quality Assurance Plan and/or request notification of extenuating circumstances, and/or COR reporting to Contractor Performance Assessment Reporting System (CPARS), and/or Reject contractor invoice and request new invoice that reflects decreased level of services delivered
Mobilization Phase PWS Section 7.1	Contractor shall implement their mobilization plan that was submitted with their proposal to start up operations and be fully operational to meet the requirements of the PWS not later than end date of the Mobilization period and prior to the commencement of training. The mobilization plan shall be submitted to the CENSECFOR DOT, ECS Det.OIC, ECS Training Officer and CENSECFOR COR for review 5 days prior to the mobilization start date.	TA Reports /COR Assessment	Post mobilization	100% of plan implemented within mobilization period	Request immediate corrective action from contractor in accordance with Quality Assurance Plan and/or request notification of extenuating circumstances, and/or COR reporting to Contractor Performance Assessment Reporting System (CPARS), and/or Reject contractor invoice and request new invoice that reflects decreased level of services delivered

Mobilization Instructor Roster PWS Section 7-1	Deliver a complete roster of ECS contract Instructors on the mobilization start date to the PCO, CENSECFOR DOT, CENSEFOR ECS COR, ECS Det. OIC, and ECS Training Officer.	TA Reports /COR Assessment	Upon mobilization start date	< 2 days Overdue	Request immediate corrective action from contractor in accordance with Quality Assurance Plan and/or request notification of extenuating circumstances, and/or COR reporting to Contractor Performance Assessment Reporting System (CPARS), and/or Reject contractor invoice and request new invoice that reflects decreased level of services delivered
Mobilization Instructor Training Jackets (ITJ) PWS Section	Create an Instructor Training Jacket (ITJ) for each prospective instructor using the format prescribed in this PWS, ensuring that appropriate documentation has been provided for all of the prerequisites contained in Section 4 and 5. The ITJs shall be ready for review and verification by the Det. OIC and/or ECS	TA Reports /COR Assessment	Upon mobilization start date	< 2 days Overdue	Request immediate corrective action from contractor in accordance with Quality Assurance Plan and/or request

7-1	Training Officer at the commencement of mobilization.				notification of extenuating circumstances, and/or COR reporting to Contractor Performance Assessment Reporting System (CPARS), and/or Reject contractor invoice and request new invoice that reflects decreased level of services delivered
Mobilization Security Requirements Section 7.1, 10, and 12	Ensure that the requirements of Section 10 and 12 of this PWS are completed and submitted within the first 5 days of the mobilization period. Inability to satisfactorily complete a background investigation and/or be issued a Common Access Card (CAC) is considered disqualifying for any instructor candidate.	TA Reports /COR Assessment	5 days of the start of mobilization period	< 2 days Overdue	Request immediate corrective action from contractor in accordance with Quality Assurance Plan and/or request notification of extenuating circumstances, and/or COR reporting to Contractor Performance Assessment Reporting System (CPARS)
Mobilization Weekly Status Report Section 7.1	The contractor shall submit a weekly Mobilization Status Report to the Detachment Training Officer and CENSECFOR COR starting on the 7th day of mobilization and continuing weekly throughout the mobilization period	TA Reports /COR Assessment	Weekly during Mobilization Period	< 2 days Overdue	Request immediate corrective action from contractor in accordance with Quality Assurance Plan and/or request notification of extenuating circumstances, and/or COR reporting to Contractor Performance Assessment Reporting System (CPARS)
Transition Out Phase Section 8-1	The contractor shall submit a Transition Support Plan to the CENSECFOR COR not later than 30 days after the plan is requested.	TA Reports /COR Assessment	Once upon request	< 2 days Overdue	Request corrective action from Contractor, inform PCO, document Contractor performance, and/or COR reporting in CPARS.

Contractor's Quality Assurance Plan PWS Section 11-1	The contractor shall provide the initial QAP to the CENSECFOR DOT, CENSECFOR COR, Det.OIC, and ECS Training Officer at the Mobilization start date. If there are significant deficiencies in the initial QAP determined by the ECS Training Officer, supplementary QAPs shall be submitted every two (2) weeks until the discrepancies are resolved. An updated QAP shall be provided to the Det. OIC, ECS Training Officer / ECS Technical Assistant and CENSECFOR ECS COR not later than the 25th day of each quarter, prior to the conclusion of that quarter (25 Sep; 25 Dec; 25 Mar; 25 Jun). Any delay in the submittal of the MSR may result in delays in validation and payment of invoices.	TA Reports /COR Assessment	Mobilization Start Date and Periodic - Quarterly	< 2 Days Overdue	Request corrective action from Contractor, inform PCO, document Contractor performance, and/or COR reporting in CPARS.
Monthly Status Report PWS Section 11-2	The contractor shall develop and submit a Monthly Status Report (MSR) not later than the 5th day of the new month to the CENSECFOR COR via the ECS Training Officer / ECS Technical Assistant.	TA Reports /COR Assessment	Monthly	< 2 Days Overdue	Request immediate corrective action from contractor in accordance with QAP/or request notification of extenuating circumstances, and/or COR reporting to Contractor Performance Assessment Reporting System (CPARS), and/or Reject contractor invoice
Trip Report PWS Section 11-3	Require his/her employees to file a trip report upon return from any periods of travel covered by this PWS.	TA Reports /COR Assessment	As Needed	< 10 Days Overdue	Request corrective action from Contractor, inform PCO, document Contractor performance,

					and/or COR reporting in CPARS.
FAR 52.222-50, Combating Trafficking in Persons	The contractor shall implement the clause at FAR 52.222-50, Combating Trafficking in Persons. Non-compliance with the trafficking in persons requirements will be brought to the immediate attention of the contracting officer.	TA Reports /COR Assessment	As Required	100% Compliance	In addition to other remedies available to the Government, the Contractor's failure to comply with the requirements of this clause may result in- (1) Requiring the Contractor to remove employees from the performance of the contract; (2) Requiring the Contractor to terminate a subcontract; (3) Suspension of contract payments until the Contractor has taken appropriate remedial action; (4) Declining to exercise available options under the contract; (6) Termination of the contract for default or cause, in accordance with the termination clause of this contract; or (7) Suspension or debarment.

*Note - If performance is within acceptable levels, it will be considered to be satisfactory. If not, overall performance may be considered unsatisfactory.

Overall Contract Inspection/Acceptance Locations

5000	Inspection and Acceptance Location Both Destination Instructions: Inspection/Acceptance DoDAAC: N3761A CountryCode: USA CENTER FOR SECURITY FORCES 1575 GATOR BLVD, BLDG 3504 SUITE 338
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	VIRGINIA BEACH, VA 23459-2751 UNITED STATES Jeffrey Tall, COR Email: jeffrey.a.tall.civ@us.navy.mil Telephone: 7574625223
5001	Inspection and Acceptance Location Both Destination Instructions: Inspection/Acceptance DoDAAC: N3761A CountryCode: USA CENTER FOR SECURITY FORCES 1575 GATOR BLVD, BLDG 3504 SUITE 338 VIRGINIA BEACH, VA 23459-2751 UNITED STATES Jeffrey Tall, COR Email: jeffrey.a.tall.civ@us.navy.mil Telephone: 7574625223
Option Line Item 5002	Inspection and Acceptance Location Both Destination Instructions: Inspection/Acceptance DoDAAC: N3761A CountryCode: USA CENTER FOR SECURITY FORCES 1575 GATOR BLVD, BLDG 3504 SUITE 338 VIRGINIA BEACH, VA 23459-2751 UNITED STATES Jeffrey Tall, COR Email: jeffrey.a.tall.civ@us.navy.mil Telephone: 7574625223
Option Line Item 5003	Inspection and Acceptance Location Both Destination Instructions: Inspection/Acceptance DoDAAC: N3761A CountryCode: USA CENTER FOR SECURITY FORCES 1575 GATOR BLVD, BLDG 3504 SUITE 338 VIRGINIA BEACH, VA 23459-2751 UNITED STATES Jeffrey Tall, COR Email: jeffrey.a.tall.civ@us.navy.mil Telephone: 7574625223
Option Line Item 5004	Inspection and Acceptance Location Both Destination Instructions: Inspection/Acceptance DoDAAC: N3761A

	CountryCode: USA CENTER FOR SECURITY FORCES 1575 GATOR BLVD, BLDG 3504 SUITE 338 VIRGINIA BEACH, VA 23459-2751 UNITED STATES Jeffrey Tall, COR Email: jeffrey.a.tall.civ@us.navy.mil Telephone: 7574625223
Option Line Item 5005	Inspection and Acceptance Location Both Destination Instructions: Inspection/Acceptance DoDAAC: N3761A CountryCode: USA CENTER FOR SECURITY FORCES 1575 GATOR BLVD, BLDG 3504 SUITE 338 VIRGINIA BEACH, VA 23459-2751 UNITED STATES Jeffrey Tall, COR Email: jeffrey.a.tall.civ@us.navy.mil Telephone: 7574625223
7001	Inspection and Acceptance Location Both Destination Instructions: Inspection/Acceptance DoDAAC: N3761A CountryCode: USA CENTER FOR SECURITY FORCES 1575 GATOR BLVD, BLDG 3504 SUITE 338 VIRGINIA BEACH, VA 23459-2751 UNITED STATES Jeffrey Tall, COR Email: jeffrey.a.tall.civ@us.navy.mil Telephone: 7574625223
Option Line Item 7002	Inspection and Acceptance Location Both Destination Instructions: Inspection/Acceptance DoDAAC: N3761A CountryCode: USA CENTER FOR SECURITY FORCES 1575 GATOR BLVD, BLDG 3504 SUITE 338 VIRGINIA BEACH, VA 23459-2751 UNITED STATES Jeffrey Tall, COR Email: jeffrey.a.tall.civ@us.navy.mil Telephone: 7574625223
Option Line Item 7003	Inspection and Acceptance Location Both

	Destination Instructions: Inspection/Acceptance DoDAAC: N3761A CountryCode: USA CENTER FOR SECURITY FORCES 1575 GATOR BLVD, BLDG 3504 SUITE 338 VIRGINIA BEACH, VA 23459-2751 UNITED STATES Jeffrey Tall, COR Email: jeffrey.a.tall.civ@us.navy.mil Telephone: 7574625223
Option Line Item 7004	Inspection and Acceptance Location Both Destination Instructions: Inspection/Acceptance DoDAAC: N3761A CountryCode: USA CENTER FOR SECURITY FORCES 1575 GATOR BLVD, BLDG 3504 SUITE 338 VIRGINIA BEACH, VA 23459-2751 UNITED STATES Jeffrey Tall, COR Email: jeffrey.a.tall.civ@us.navy.mil Telephone: 7574625223
Option Line Item 7005	Inspection and Acceptance Location Both Destination Instructions: Inspection/Acceptance DoDAAC: N3761A CountryCode: USA CENTER FOR SECURITY FORCES 1575 GATOR BLVD, BLDG 3504 SUITE 338 VIRGINIA BEACH, VA 23459-2751 UNITED STATES Jeffrey Tall, COR Email: jeffrey.a.tall.civ@us.navy.mil Telephone: 7574625223

Section F - Deliveries or Performance

Line Item	Delivery Schedule	Quantity	Address and POC
5000	Period of Performance From 18 Jul 2026 To 31 Aug 2026	1.5 Months	
5001	Period of Performance From 01 Sep 2026 To 17 Jul 2027	10.5 Months	
Option Line Item 5002	Period of Performance From 18 Jul 2027 To 17 Jul 2028	12 Months	
Option Line Item 5003	Period of Performance From 18 Jul 2028 To 17 Jul 2029	12 Months	
Option Line Item 5004	Period of Performance From 18 Jul 2029 To 17 Jul 2030	12 Months	
Option Line Item 5005	Period of Performance From 18 Jul 2030 To 17 Jul 2031	12 Months	
7001	Period of Performance From 01 Sep 2026 To 17 Jul 2027	1 Job	
Option Line Item 7002	Period of Performance From 18 Jul 2027 To 17 Jul 2028	1 Job	
Option Line Item 7003	Period of Performance From 18 Jul 2028 To 17 Jul 2029	1 Job	
	Period of Performance	1 Job	

Option Line Item 7004	From 18 Jul 2029 To 17 Jul 2030		
Option Line Item 7005	Period of Performance From 18 Jul 2030 To 17 Jul 2031	1 Job	

Section G - Contract Administration Data

CONTRACT ADMINISTRATION PLAN (CAP) FOR FIXED PRICE CONTRACTS

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In order to expedite the administration of this contract, the following delineation of duties is provided. The names, addresses and phone numbers for these offices or individuals are included elsewhere in the contract award document. The office or individual designated as having responsibility should be contacted for any questions, clarifications, or information regarding the administration function assigned.

1. The Procuring Contract Office (PCO) is responsible for:

- a. All pre-award duties such as solicitation, negotiation and award of contracts.
- b. Any information or questions during the pre-award stage of the procurement.
- c. Freedom of Information inquiries.
- d. Changes in contract terms and/or conditions.
- e. Post award conference.

2. The Contract Administration Office (CAO) is responsible for matters specified in the FAR 42.302 and DFARS 42.302 except those areas otherwise designated as the responsibility of the Contracting Officer's Representative (COR) or someone else herein.

3. The paying office is responsible for making payment of proper invoices after acceptance is documented.

4. The Contracting Officer's Representative (COR) is responsible for interface with the contractor and performance of duties such as those set forth below. It is emphasized that only the PCO/CAO has the authority to modify the terms of the contract. In no event will any understanding, agreement, modification, change order, or other matter deviating from the terms of the basic contract between the contractor and any other person be effective or binding on the Government. If in the opinion of the contractor an effort outside the scope of the contract is requested, the contractor shall promptly notify the PCO in writing. No action may be taken by the contractor unless the PCO or CAO has issued a contractual change. The COR duties are as follows:

a. Technical Interface

(1) The COR is responsible for all Government technical interface concerning the contractor and furnishing technical instructions to the contractor. These instructions may include: technical advice/recommendations/clarifications of specific details relating to technical aspects of contract requirements; milestones to be met within the general terms of the contract or specific subtasks of the contract; or, any other interface of a technical nature necessary for the contractor to perform the work specified in the contract. The COR is the point of contact through whom the contractor can relay questions and problems of a technical nature to the PCO.

(2) The COR is prohibited from issuing any instruction which would constitute a contractual change. The COR shall not instruct the contractor how to perform. If there is any doubt whether technical instructions contemplated fall within the scope of work, contact the PCO for guidance before transmitting the instructions to the contractor.

b. Contract Surveillance

(1) The COR shall monitor the contractor's performance and progress under the contract. In performing contract surveillance duties, the COR should exercise extreme care to ensure that he/she does not cross the line of personal services. The COR must be able to distinguish between surveillance (which is proper and necessary) and supervision (which is not permitted). Surveillance becomes supervision when you go beyond enforcing the terms of the contract. If the contractor is directed to perform the contract services in a specific manner, the line is being crossed. In such a situation, the COR's actions would be equivalent to using the contractor's personnel as if they were government employees and would constitute transforming the contract into one for personal services.

(2) The COR shall monitor contractor performance to see that inefficient or wasteful methods are not being used. If such practices are observed, the COR is responsible for taking reasonable and timely action to alert the contractor and the PCO to the situation.

(3) The COR will take timely action to alert the PCO to any potential performance problems. If performance schedule slippage is detected, the COR should determine the factors causing the delay and report them to the PCO, along with the contractor's proposed actions to eliminate or overcome these factors and recover the slippage. Once a recovery plan has been put in place, the COR is responsible for monitoring the recovery and keeping the PCO advised of progress.

(4) If the Contractor Performance Assessment Reporting System (CPARS) is applicable to the contract you are responsible for completing a Contractor Performance Assessment Report (CPAR) in the CPARS Automated Information System (AIS). The initial CPAR, under an eligible contract, must reflect evaluation of at least 180 days of contractor performance. The completed CPAR, including contractor comments if any, (NOTE: contractors are allowed 30 days to input their comments) should be available in the CPARS AIS for reviewing official (PCO) review no later than 270 days after start of contract performance. Subsequent CPARs covering any contract option periods should be ready at 1-year intervals thereafter.

c. Invoice Review and Approval/Inspection and Acceptance

(1) The COR is responsible for quality assurance of services performed and acceptance of the services or deliverables. The COR shall expeditiously review copies of the contractor's invoices or vouchers, certificate of performance and all other supporting documentation to determine the reasonableness of the billing. In making this determination, the COR must take into consideration all documentary information available and any information developed from personal observations.

(2) The COR must indicate either complete or partial concurrence with the contractor's invoice/voucher by executing the applicable certificate of performance furnished by the contractor. The COR must be cognizant of the invoicing procedures and prompt payment due dates detailed elsewhere in the contract.

(3) The COR will provide the PCO and the CAO with copies of acceptance documents such as Certificates of Performance.

(4) The COR shall work with the Contractor to obtain and execute a final invoice no more than 60 days after completion of contract performance. The COR shall ensure that the invoice is clearly marked as a "Final Invoice."

d. Contract Modifications. The COR is responsible for developing the statement of work for change orders or modifications and for preparing an independent government cost estimate of the effort described in the proposed statement of work.

e. Administrative Duties

(1) The COR shall take appropriate action on technical correspondence pertaining to the contract and for maintaining files on each contract. This includes all modifications, government cost estimates, contractor invoices/vouchers, certificates of performance, DD 250 forms and contractor's status reports.

(2) The COR shall maintain files on all correspondence relating to contractor performance, whether satisfactory or unsatisfactory, and on trip reports for all government personnel visiting the contractor's place of business for the purpose of discussing the contract.

(3) The COR must take prompt action to provide the PCO with any contractor or technical code request for change, deviation or waiver, along with any supporting analysis or other required documentation.

f. Government Furnished Property. When government property is to be furnished to the contractor, the COR will take the necessary steps to insure that it is furnished in a timely fashion and in proper condition for use. The COR will maintain adequate records to ensure that property furnished is returned and/or that material has been consumed in the performance of work.

Enclosure (1)

g. Security. The COR is responsible for ensuring that any applicable security requirements are strictly adhered to.

h. Standards of Conduct. The COR is responsible for reading and complying with all applicable agency standards of conduct and conflict of interest instructions.

i. Written Report/Contract Completion Statement.

(1) The COR is responsible for timely preparation and submission to the PCO, of a written, annual evaluation of the contractors performance. The report shall be submitted within 30 days prior to the exercise of any contract option and 60 days after contract completion. The report shall include a written statement that services were received in accordance with the Contract terms and that the contract is now available for close-out. The report shall also include a statement as to the use made of any deliverables furnished by the contractor.

(2) If the Contractor Performance Assessment Reporting System (CPARS) is applicable to the contract you are responsible for completing a final Contractor Performance Assessment Report (CPAR) in the CPARS with 30 days of contract completion.

(3) The COR is responsible for providing necessary assistance to the Contracting Officer in performing Contract Close-out in accordance with FAR 4.804, Closeout of Contract Files.

5. The Technical Assistant (TA), if appointed, is responsible for providing routine administration and monitoring assistance to the COR. The TA does not have the authority to provide any technical direction or clarification to the contract. Duties that may be performed by the TA are as follows:

a. Identify contractor deficiencies to the COR.

b. Review contract deliverables, recommend acceptance/rejection, and provide the COR with documentation to support the recommendation.

- c. Assist in preparing the final report on contractor performance for the applicable contract in accordance with the format and procedures prescribed by the COR.
- d. Identify contract noncompliance with reporting requirements to the COR.
- e. Review contractor status and progress reports, identify deficiencies to the COR, and provide the COR with recommendations regarding acceptance, rejection, and/or Government technical clarification requests.
- f. Review invoices and provide the COR with recommendations to facilitate COR certification of the invoice.
- g. Provide the COR with timely input regarding technical clarifications for the statement of work, possible technical direction to provide the contractor, and recommend corrective actions.
- h. Provide detailed written reports of any trip, meeting, or conversation to the COR subsequent to any interface between the TA and contractor.

DFARS Clauses Incorporated by Full Text

252.232-7006 Wide Area WorkFlow Payment Instructions.

(Jan 2023)

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

TO BE FILLED IN AT TIME OF AWARD

(a) Definitions. As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) Electronic invoicing. The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) WAWF access. To access WAWF, the Contractor shall-

- (1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and
- (2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) WAWF training. The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	=====
Issue By DoDAAC	=====
Admin DoDAAC	=====
Inspect By DoDAAC	=====
Ship To Code	=====
Ship From Code	=====

Mark For Code	==
Service Approver (DoDAAC)	==
Service Acceptor (DoDAAC)	==
Accept at Other DoDAAC	==
LPO DoDAAC	==
DCAA Auditor DoDAAC	==
Other DoDAAC(s)	==

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

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(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Additional Regulation or Supplemental Clauses Incorporated by Full Text

NCH01-01 COMMUNICATIONS DURING THE LIFE OF THE CONTRACT (SEP 2015)

(Dec 2025)

COMMUNICATIONS DURING THE LIFE OF THE CONTRACT (SEP 2015)

TO BE FILLED IN AT TIME OF AWARD

(a) Except as specified in paragraph (b) below, no order, statement, or conduct of Government personnel who visit the Contractor's facilities or in any other manner communicates with Contractor personnel during the performance of this contract shall constitute a change under the "Changes" clause of this contract.

(b) The Contractor shall not comply with any order, direction or request of Government personnel unless it is issued in writing and signed by the Contracting Officer, or is pursuant to specific authority otherwise included as a part of this contract.

(c) The Contracting Officer is the only person authorized to approve changes in any of the requirements of this contract and, notwithstanding provisions contained elsewhere in this contract, the said authority remains solely the Contracting Officer's. In the event the contractor effects any change at the direction of any person other than the Contracting Officer, the change will be considered to have been made without authority and no adjustment will be made in the contract price to cover any increase in charges incurred as a result thereof. The address and telephone number of the Principal Contracting Officer is:

Section H - Special Contract Requirements

Additional Regulation or Supplemental Clauses Incorporated by Full Text

NCH42-01 CONTRACT ADMINISTRATION APPOINTMENTS AND DUTIES (SEP 2015)

(Dec 2025)

CONTRACT ADMINISTRATION APPOINTMENTS AND DUTIES (SEP 2015)

TO BE FILLED IN AT TIME OF AWARD

In order to expedite administration of this contract/order, the following delineation of duties is provided including the names, addresses and phone numbers for each individual or office as specified. The individual/position designated as having responsibility should be contacted for any questions, clarifications or information regarding the functions assigned.

1. PROCURING CONTRACTING OFFICER (PCO) is responsible for:

- a. All pre-award information, questions, or data;
- b. Freedom of Information inquiries;
- c. Change/question/information regarding the scope, terms or conditions of the basic contract document; and/or
- d. Arranging the post award conference (See FAR 42.503).

Name:

Address:

Phone:

2. CONTRACT ADMINISTRATION OFFICE (CAO) is responsible for matters specified in FAR 42.302 and DFARS 242.302 except in those areas otherwise designated herein.

Name:

Address:

Phone:

3. DEFENSE CONTRACT AUDIT AGENCY (DCAA) is responsible for audit verification/provisional approval of invoices and final audit of the contract prior to final payment to the contractor.

Name:

Address:

Phone:

4. PAYING OFFICE is responsible for payment of proper invoices after acceptance is documented.

Name:

Address:

Phone:

5. CONTRACTING OFFICERS REPRESENTATIVE (COR) is responsible for:

- a. Liaison with personnel at the Government installation and the contractor personnel on site;
- b. Technical advice/recommendations/clarification on the statement of work;
- c. The statement of work for delivery/task orders placed under this contract.

- d. An independent government estimate of the effort described in the definitized statement of work;
- e. Quality assurance of services performed and acceptance of the services or deliverables;
- f. Government furnished property;
- g. Security requirements on Government installation;
- h. Providing the PCO or his designated Ordering Officer with appropriate funds for issuance of the Delivery/Task order; and/or
- i. Certification of invoice for payment.

NOTE: When, in the opinion of the Contractor, the COR requests effort outside the existing scope of the contract (or delivery/task order), the Contractor shall promptly notify the Contracting Officer (or Ordering Officer) in writing. No action shall be taken by the contractor under such direction until the Contracting Officer has issued a modification to the contract or, in the case of a delivery/task order, until the Ordering Officer has issued a modification of the delivery/task order; or until the issue has otherwise been resolved. THE COR IS NOT AN ADMINISTRATIVE CONTRACTING OFFICER AND DOES NOT HAVE THE AUTHORITY TO DIRECT THE ACCOMPLISHMENT OF EFFORT WHICH IS BEYOND THE SCOPE OF THE STATEMENT OF WORK IN THE CONTRACT OR DELIVERY/TASK ORDER.

COR Name:

Address:

Phone:

In the event that the COR named above is absent due to leave, illness, or official business, all responsibilities and functions assigned to the COR will be the responsibility of the alternate COR listed below:

ACOR Name:

Address:

Phone:

6. TECHNICAL ASSISTANT, if assigned by the requiring activity, is responsible for providing technical assistance and support to the COR in contract administration by:

- a. Identifying contractor deficiencies to the COR;
- b. Reviewing contract/delivery/task order deliverables and recommending acceptance/rejection of deliverables;
- c. Identifying contractor noncompliance of reporting requirements;
- d. Evaluating contractor proposals for specific contracts/orders and identifying areas of concern affecting negotiations;
- e. Reviewing contractor reports providing recommendations for acceptance/rejection;
- f. Reviewing invoices for appropriateness of costs and providing recommendations to facilitate certification of the invoice;
- g. Providing COR with timely input regarding the SOW, technical direction to the contractor and recommending corrective actions; and
- h. Providing written reports to the COR as required concerning trips, meetings or conversations with the contractor.

Name:

Address:

Phone:

7. ORDERING OFFICER is responsible for:

- a. Requesting, obtaining, and evaluating proposals for orders to be issued;
- b. Determining the estimated cost of the order is fair and reasonable for the effort proposed;
- c. Obligating the funds by issuance of the delivery/task order;

- d. Authorization for use of overtime;
- e. Authorization to begin performance; and/or
- f. Monitoring of total cost of delivery/task orders issued.

The following limitations/restrictions are placed on the Ordering Officer:

- a. Type of order issued is limited by this contract to the contract type or types covered by this contract and to any limitations on the warrant of the individual placing the orders;
- b. No order shall be placed in excess of \$----- without the prior approval of the PCO; and/or
- c. No order shall be placed with delivery requirements in excess of -----.

Name:

Address:

Phone:

NCH01-02 APPOINTMENT OF CONTRACTING OFFICER'S REPRESENTATIVE (SEP 2015) (Dec 2025)

APPOINTMENT OF CONTRACTING OFFICER'S REPRESENTATIVE (SEP 2015)

TO BE FILLED IN AT TIME OF AWARD

(a) The Contracting Officer hereby designates the following individual as Contracting Officer's Representative(s) (COR) for this contract:

NAME CODE

MAIL ADDRESS

TELEPHONE NUMBER

(b) In the absence of the COR named above, all responsibilities and functions assigned to the COR shall be the responsibility of the alternate COR acting on behalf of the COR. The Contracting Officer hereby appoints the following individual as the alternate COR:

NAME CODE

MAIL ADDRESS

TELEPHONE NUMBER

Section I - Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-6	Restrictions on Subcontractor Sales to the Government. (Alternate I)	Jun 2020	Alternate I	Nov 2021
52.219-27	Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program. (Deviation 2026-O0038)	Feb 2026		
52.222-40	Notification of Employee Rights Under the National Labor Relations Act. (Deviation 2026-O0038)	Feb 2026		
52.222-41	Service Contract Labor Standards. (Deviation 2026-O0038)	Feb 2026		
52.222-43	Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts). (Deviation 2026-O0038)	Feb 2026		
52.222-54	Employment Eligibility Verification. (Deviation 2026-O0038)	Feb 2026		
52.223-5	Pollution Prevention and Right-to-Know Information.	May 2024		
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024		
52.229-12	Tax on Certain Foreign Procurements.	Feb 2021		
52.237-2	Protection of Government Buildings, Equipment, and Vegetation.	Apr 1984		
52.240-91	Security Prohibitions and Exclusions. (Deviation 2026-O0038)	Feb 2026		
52.244-6	Subcontracts for Commercial Products and Commercial Services. (Deviation 2026-O0038)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting. (DEVIATION 2024-O0013 REVISION 1)	May 2024	Deviation 2024-O0013	May 2024
252.204-7022	Expediting Contract Closeout.	May 2021		
252.204-7023	Reporting Requirements for Contracted Services.	Jul 2021		
252.223-7006	Prohibition on Storage, Treatment, and Disposal of Toxic or Hazardous Materials.	Sep 2014		
252.225-7052	Restriction on the Acquisition of Certain Magnets, Tantalum, and Tungsten.	May 2024		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023		
252.225-7967	Prohibition Regarding Russian Fossil Fuel Business Operations (Deviation 2024-O0006, Revision 1)	Feb 2024	Deviation 2024-O0006	Feb 2024
252.225-7972	Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems. (DEVIATION 2024-O0014)	Aug 2024	Deviation 2024-O0014	Aug 2024
252.244-7999	Subcontracts for Commercial Products or Commercial Services. (DEVIATION 2026-O0015)	Feb 2026	Deviation 2026-O0015	Jan 2026

FAR Clauses Incorporated by Full Text

52.217-9 Option to Extend the Term of the Contract. (Mar 2000)

Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 1 day; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 7 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 60 months.

(End of clause)

52.219-14 Limitations on Subcontracting (DEVIATION 2021-O0008) (Feb 2026) Deviation 2021-O0008 (Feb 2023)

LIMITATIONS ON SUBCONTRACTING (FEB 2023) (DEVIATION 2021-O0008)

(a) This clause does not apply to the unrestricted portion of a partial set-aside.

(b) *Definition.* Similarly situated entity, as used in this clause, means a first-tier subcontractor, including an independent contractor, that--

(1) Has the same small business program status as that which qualified the prime contractor for the award (e.g., for a small business set-aside contract, any small business concern, without regard to its socioeconomic status); and

(2) Is considered small for the size standard under the North American Industry Classification System (NAICS) code the prime contractor assigned to the subcontract.

(c) *Applicability.* This clause applies only to--

(1) Contracts that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(2) Part or parts of a multiple-award contract that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(3) Contracts that have been awarded on a sole-source basis in accordance with subparts 19.8, 19.13, 19.14, and 19.15;

(4) Orders expected to exceed the simplified acquisition threshold and that are--

(i) Set aside for small business concerns under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or

(ii) Issued directly to small business concerns under multiple-award contracts as described in 19.504(c)(1)(ii);

(5) Orders, regardless of dollar value, that are--

(i) Set aside in accordance with subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or

(ii) Issued directly to concerns that qualify for the programs described in subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 19.504(c)(1)(ii); and

(6) Contracts using the HUBZone price evaluation preference to award to a HUBZone small business concern unless the concern waived the evaluation preference.

(d) *Independent contractors.* An independent contractor shall be considered a subcontractor.

(e) *Limitations on subcontracting.* By submission of an offer and execution of a contract, the Contractor agrees that in performance of a contract assigned a North American Industry Classification System (NAICS) code for--

(1) Services (except construction), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding certain other direct costs and certain work performed outside the United States (see paragraph (e)(1)(i)), to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract. The following services may be excluded from the 50 percent limitation:

(i) Other direct costs, to the extent they are not the principal purpose of the acquisition and small business concerns do not provide the service. Examples include airline travel, work performed by a transportation or disposal entity under a contract assigned the environmental remediation NAICS code 562910), cloud computing services, or mass media purchases.

(ii) Work performed outside the United States on awards made pursuant to the Foreign Assistance Act of 1961, or work performed outside the United States required to be performed by a local contractor.

(2) Supplies (other than procurement from a nonmanufacturer of such supplies), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the contract;

(3) General construction, it will not pay more than 85 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 85 percent subcontract amount that cannot be exceeded; or

(4) Construction by special trade contractors, it will not pay more than 75 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 75 percent subcontract amount that cannot be exceeded.

(f) The Contractor shall comply with the limitations on subcontracting as follows:

(1) For contracts, in accordance with paragraphs (c)(1), (2), (3) and (6) of this clause--

[Contracting Officer check as appropriate.]

☒ By the end of the base term of the contract and then by the end of each subsequent option period; or

☐ By the end of the performance period for each order issued under the contract.

(2) For orders, in accordance with paragraphs (c)(4) and (5) of this clause, by the end of the performance period for the order.

(g) A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (e) of this clause will be performed by the aggregate of the joint venture participants.

(1) In a joint venture comprised of a small business protege and its mentor approved by the Small Business Administration, the small business protege shall perform at least 40 percent of the work performed by the joint venture. Work performed by the small business protege in the joint venture must be more than administrative functions.

(2) In an 8(a) joint venture, the 8(a) participant(s) shall perform at least 40 percent of the work performed by the joint venture. Work performed by the 8(a) participants in the joint venture must be more than administrative functions.

(End of clause)

52.219-28 Postaward Small Business Program Rerepresentation. (Deviation 2026-O0038) (Feb 2026)

POSTAWARD SMALL BUSINESS PROGRAM REREPRESENTATION (FEB 2026) (DEVIATION 2026-O0038)

(a) *Definitions.* As used in this clause-

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (c) of this clause.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was a small business concern, a small disadvantaged business concern, or a joint venture that was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (e) of this clause or, if applicable, paragraph (g) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at <https://www.sba.gov/document/support--table-size-standards>.

(d) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(e) Except as provided in paragraph (g) of this clause, the Contractor shall make the representation(s) required by paragraph (b) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, that the data have been validated or updated, and provide the date of the validation or update.

(f) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (e) or (g) of this clause.

(g) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it ☐ is, ☐ is not a small business concern under _____NAICS Code assigned to _____contract number.

(2) [Complete only if the Contractor represented itself as a small business concern in paragraph (g)(1) of this clause.] The Contractor represents that it ☐ is, ☐ is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) *Women-owned small business (WOSB) joint venture eligible under the WOSB Program.* The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(4) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(5) *Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program.* The Contractor represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [____The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(6) *HUBZone joint venture eligible under the HUBZone Program.*[Complete only if the offeror is a HUBZone small business concern.] The offeror represents, as part of its offer, that It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [____The Contractor shall enter the name and unique entity identifier of each party to the joint venture: .] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern. [____Contractor to sign and date and insert authorized signer's name and title.]

(End of clause)

52.222-42 Statement of Equivalent Rates for Federal Hires.

(May 2014)

Statement of Equivalent Rates for Federal Hires (May 2014)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR Part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C.5341 or 5332.

This Statement is for Information Only: It is not a Wage Determination

Employee Class	Monetary Wage	Fringe Benefits
Expeditionary Combat Skills ECS Weapons- based Instructor I -Judgement-based Engagement Training JET	GS 9 Step 1 (\$29.57)	38.6% (\$11.41)
ECS Weapons-based Instructor I - JET Phase Lead	GS 10 Step 1 (\$32.57)	38.6% (\$12.57)
ECS Weapons-based Instructor II - High Risk	GS 11 Step 1 (\$35.78)	38.6% (\$13.81)

ECS Weapons-based Instructor II - High Risk Phase Lead	GS 12 Step 1 (\$42.89)	38.6% (\$16.56)
ECS Medical Support Tactical Combat Casualty Care -TCCC Instructor	GS 11 Step 1 (\$35.78)	38.6% (\$13.81)
ECS Medical Support TCCC Instructor Phase Lead	GS 12 Step 1 (\$42.89)	38.6% (\$16.56)
ECS Instructor Site Lead	GS 12 Step 1 (\$42.89)	38.6% (\$16.56)

(End of clause)

52.252-2 Clauses Incorporated by Reference.

(Feb 1998)

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52> and https://www.acq.osd.mil/dpap/dars/dfars_far_overhaul_class_deviations.html

(End of clause)

52.252-6 Authorized Deviations in Clauses.

(Nov 2020)

Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any DFARS (48 CFR Chapter 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

DFARS Clauses Incorporated by Full Text

252.232-7007 Limitation of Government's Obligation.

(Apr 2014)

LIMITATION OF GOVERNMENT'S OBLIGATION (APR 2014)

TO BE FILLED IN AT TIME OF AWARD

(a) Contract line item(s) [Contracting Officer insert after negotiations] is/are incrementally funded. For this/these item(s), the sum of \$ [Contracting Officer insert after negotiations] of the total price is presently available for payment and allotted to this contract. An allotment schedule is set forth in paragraph (j) of this clause.

(b) For item(s) identified in paragraph (a) of this clause, the Contractor agrees to perform up to the point at which the total amount payable by the Government, including reimbursement in the event of termination of those item(s) for the Government's convenience, approximates the total amount currently allotted to the contract. The Contractor is not authorized to continue work on those item(s) beyond that point. The Government will not be obligated in any event to reimburse the Contractor in excess of the amount allotted to the contract for those item(s) regardless of anything to the contrary in the clause entitled "Termination for Convenience of the Government." As used in this clause, the total amount payable by the Government in the event of termination of applicable contract line item(s) for convenience includes costs, profit, and estimated termination settlement costs for those item(s).

(c) Notwithstanding the dates specified in the allotment schedule in paragraph (j) of this clause, the Contractor will notify the Contracting Officer in writing at least ninety days prior to the date when, in the Contractor's best judgment, the work will reach the point at which the total amount payable by the Government, including any cost for termination for convenience, will approximate 85 percent of the total amount then allotted to the contract for performance of the applicable item(s). The notification will state (1) the estimated date when that point will be reached and (2) an estimate of additional funding, if any, needed to continue performance of applicable line items up to the next scheduled date for allotment of funds identified in paragraph (j) of this clause, or to a mutually agreed upon substitute date. The notification will also advise the Contracting Officer of the estimated amount of additional funds that will be required for the timely performance of the item(s) funded pursuant to this clause, for a subsequent period as may be specified in the allotment schedule in paragraph (j) of this clause or otherwise agreed to by the parties. If after such notification additional funds are not allotted by the date identified in the Contractor's notification, or by an agreed substitute date, the Contracting Officer will terminate any item(s) for which additional funds have not been allotted, pursuant to the clause of this contract entitled "Termination for Convenience of the Government."

(d) When additional funds are allotted for continued performance of the contract line item(s) identified in paragraph (a) of this clause, the parties will agree as to the period of contract performance which will be covered by the funds. The provisions of paragraphs (b) through (d) of this clause will apply in like manner to the additional allotted funds and agreed substitute date, and the contract will be modified accordingly.

(e) If, solely by reason of failure of the Government to allot additional funds, by the dates indicated below, in amounts sufficient for timely performance of the contract line item(s) identified in paragraph (a) of this clause, the Contractor incurs additional costs or is delayed in the performance of the work under this contract and if additional funds are allotted, an equitable adjustment will be made in the price or prices (including appropriate target, billing, and ceiling prices where applicable) of the item(s), or in the time of delivery, or both. Failure to agree to any such equitable adjustment hereunder will be a dispute concerning a question of fact within the meaning of the clause entitled "Disputes."

(f) The Government may at any time prior to termination allot additional funds for the performance of the contract line item(s) identified in paragraph (a) of this clause.

(g) The termination provisions of this clause do not limit the rights of the Government under the clause entitled "Default." The provisions of this clause are limited to the work and allotment of funds for the contract line item(s) set forth in paragraph (a) of this clause. This clause no longer applies once the contract is fully funded except with regard to the rights or obligations of the parties concerning equitable adjustments negotiated under paragraphs (d) and (e) of this clause.

(h) Nothing in this clause affects the right of the Government to terminate this contract pursuant to the clause of this contract entitled "Termination for Convenience of the Government."

(i) Nothing in this clause shall be construed as authorization of voluntary services whose acceptance is otherwise prohibited under 31 U.S.C. 1342.

(j) The parties contemplate that the Government will allot funds to this contract in accordance with the following schedule:

On execution of contract	\$ ____
(month) (day), (year) ____	\$ ____
(month) (day), (year) ____	\$ ____
(month) (day), (year) ____	\$ ____

(End of clause)

**203.1106-1(3-18) SUPTXT 203.1106-1 (3-18) NAVY USE OF ABILITYONE SUPPORT
CONTRACTOR - RELEASE OF OFFEROR INFORMATION**

(Jan 2024)

NAVSUP Fleet Logistics Center Norfolk may utilize contractor support through the AbilityOne Program, as needed, to perform contract closeout functions for this acquisition. Information, including business sensitive /confidential or proprietary data, that the offeror provides to the Government or information already in the possession of the Government may be viewed and utilized by the AbilityOne Program support contractor personnel during the course of its contract performance. The information that may be made available to the support contractor may include, for example, pricing and technical proposals, historical contract, pricing and performance information, Commercial Asset Visibility (CAV) reporting information and similar data /information.

By submission of a proposal in response to this solicitation, the offeror and its subcontractors consent to a release of their business sensitive/confidential or proprietary data to the Government's AbilityOne Program support contractor personnel in order to perform close out services. Prior to the release of any such information to the support contractor, the support contractor will have in place with the Government a Non-Disclosure/Non-Use Agreement in accordance with the terms of the AbilityOne Program support contract.

Offerors may execute their own Non-Disclosure Agreement with the AbilityOne Program (AbilityOne contact information available from the contracting point of contact). The support contractor must provide copies of the executed agreements to the Contracting Officer and the Contracting Officer's Representative (COR) for the support contract; and the offeror/contractor for this acquisition must provide copies of the executed Agreement to the Contracting Officer for this acquisition. If the offeror/contractor seeks such a Non-Disclosure Agreement with the AbilityOne Program support contractor, the Agreement must be executed no later than the date of final delivery under the resulting NAVSUP Fleet Logistics Center Norfolk contract.

**204-9400(05-24) SUPTXT204-9400(05-24) CONTRACTOR UNCLASSIFIED ACCESS TO
FEDERALLY CONTROLLED FACILITIES, SENSITIVE INFORMATION,
INFORMATION TECHNOLOGY (IT) SYSTEMS OR PROTECTED HEALTH
INFORMATION**

(Jan 2024)

(a) Insert the following, as applicable, in full text in all solicitations and contracts (including commercial acquisitions) Statement of Work (SOW) or Performance Work Statement (PWS) under the Schedule of Supplies/Services.

To submit recommended contract language to be incorporated into the Naval Supply Systems Command (NAVSUP) Contracts Handbook (CH) as NAVSUP component text, the language must not meet the requirements for a regulation clarification or change. All submissions (utilizing the text template on Contracting Knowledge Site (CKS)) should be reviewed and approved by the activity's Chief of the Contracting Office (CCO) prior to submission.

(1) SUPTXT204-9400 (05-24) Prescription and Alternative Language

The following shall be inserted in full text in all solicitations and contracts (including commercial acquisitions) which require contractor unclassified access to federally controlled facilities, sensitive information, Information Technology (IT) systems or protected health information. For commercial acquisitions, this text shall be incorporated into either the SOW or PWS.

* Consult with your CSM and ISSM/IAM for local policy when Authorized User (non-sensitive) access is required for non-U.S. citizens outside the U. S.

** Alternative language which may be included as appropriate:

Contractor and all Contractor employees with access to or responsibility for XXXXXX of this contract shall comply with DoD Directive 8500.1E IA, DoDI 8510.01 Risk Management Framework (RMF) for DoD IT, DoD Directive 5400.11 DoD Privacy Program, DoD 5200.2-R Personnel Security Program and HSPD 12

X.1 Be CAC ready at the properly designated IT System Level

X.2 At minimum, all contractor employees must possess/maintain the required background investigation as determined by the PDT and/or IT access user level. This requirement is critical in order to access the government data base systems It is the contractor's responsibility to ensure that 100% of the contractor employees have the ability to acquire a favorably adjudicated background investigation. In addition, interim approval of clearances is not authorized.

X.3 Be citizens of the U.S

X.4 If at any time, any contractor employee requiring a Common Access Card (CAC) is unable to possess/maintain the required adjudicated background investigation, the contractor shall immediately notify the NAVSUP COR to coordinate removal of such a person from work under this contract.

X.5 Contractor employees with access to or responsibility for nonpublic government data under this contract must comply with HSPD-12 Personal Identity Verification (PIV) issuance requirements, known as the CAC.

(1) SUPTXT204-9400(4-22) CONTRACTOR UNCLASSIFIED ACCESS TO FEDERALLY CONTROLLED FACILITIES, SENSITIVE INFORMATION, INFORMATION TECHNOLOGY (IT) SYSTEMS OR PROTECTED HEALTH INFORMATION

The security text does not apply in cases where the contractor/vendor does not have access to Navy Marine Corps Intranet (NMCI) computers, is not issued a Common Access Card (CAC) and is involved in training or other short term duties of less than 30 days duration that allow for the use of a visitor request. In these cases, the government employee must submit a Visitor Access Request (VAR) to the main gate or applicable processing entity for your facility and assume responsibility to escort those without CAC Credentials.

This local text does not apply to non-United States (U.S.) Nationals (foreign nationals) who are contractor employees performing work overseas. This text is applicable to the U.S. Nationals living in the U.S. or overseas who are performing work on a Navy contract.

The investigation of a non-U.S. national at a foreign location must be consistent with a National Agency Check with Written Inquiries (NACI), to the extent possible and include a fingerprint check against the Federal Bureau of Investigation (FBI) criminal history database, an FBI investigations file (name check) search and a name check against the terrorist screening database. Also, the above cited reference notes that Foreign Nationals may not be granted CAC credentials until completion of their investigation and not in the interim.

Per Department of Defense Memorandum (DoDM) 5200.2, Department of Defense (DoD) components must initiate and ensure completion of a background investigation before applying the credentialing standards to a non-U.S. national at a foreign location. The background investigation must be favorably adjudicated before a CAC can be issued to a non-U.S. national at a foreign location. The type of background investigation may vary based on standing reciprocity treaties concerning identity assurance and information exchanges that exist between the U.S. and its allies or agency agreements with the host country.

CONTRACTOR UNCLASSIFIED ACCESS TO FEDERALLY CONTROLLED FACILITIES, SENSITIVE INFORMATION, IT SYSTEMS OR PROTECTED HEALTH INFORMATION

Executive Order 13467, Reforming Processes Related to Suitability for Government Employee, Fitness for Contractor Employees and Eligibility for Access to Classified National Security Information, Homeland Security Presidential Directive (HSPD)-12, requires government agencies to develop and implement Federal security standards for Federal employees and contractors. The 5 CFR 32 Part 157 in concert with DoD Manual 1000.13, Vol 1, implements the Federal Standards.

APPLICABILITY

This text applies to all DoD sponsored individuals who require CAC eligibility (or login and P/W if acceptable per contract) for: Physical access to DoD facilities or non-DoD facilities on behalf of DoD; Logical access to information systems (whether on site or remotely); or remote access to DoD networks that use only the CAC logon for user authentication, or access to sensitive and protected information. This applies to the Office of the Secretary of Defense (OSD), the Military Departments, the Office of the Chairman of the Joint Chiefs of Staff and the Joint Staff, the Combatant Commands, the Office of the Inspector General of the DoD, the Defense Agencies, the DoD Field Activities and all other organizational entities within the DoD (hereinafter referred to collectively as the "DoD Components").

Each contractor employee providing services at a Navy command under this contract is required to obtain a DoD CAC. Additionally, depending on the level of computer/network access, the contract employee will require a successful investigation as detailed below.

ACCESS TO FEDERAL FACILITIES

Definition. As used in this clause - Military installation means a base, camp, post, station, yard, center, or other activity under the jurisdiction of the Secretary of a military department, or, in the case of an activity in a foreign country, under the operational control of the Secretary of a military department or the Secretary of Defense (see 10 U.S.C. 2801(c)(4)).

Per HSPD-12 and implementing guidance, all contractor employees working at a federally controlled base, facility or activity under this clause will require a DoD CAC. When access to a base, facility or activity is required contractor employees shall in-process with the Command's Security Manager (CSM) upon arrival to the command and shall out-process prior to their departure at the completion of the individual's performance under the contract.

Training. Contractor employees who require routine physical access to a Federally controlled facility or military installation shall complete "Level I Antiterrorism Awareness Training" prior to gaining access to a facility and annually thereafter in accordance with DoDI O-2000.16 Vol. 1. In accordance with Department of Defense Instruction O-2000.16 Volume 1, DoD Antiterrorism (AT) Program Implementation: DoD AT Standards, Level I Antiterrorism Awareness Training shall be completed by:

1. Completion of "Level I Antiterrorism Awareness Training" available at <https://jkodirect.jten.mil/pdf/at11/launch.html>; or
2. Under the instruction of a qualified Level I Antiterrorism Awareness instructor; or
3. By providing a training certificate for "Level I Antiterrorism Awareness Training" training showing completion within the last calendar year.

The contractor will submit certificates of completion for each affected contractor employee and subcontractor employee to the COR or to the contracting officer, if a COR is not assigned, prior to being granted access to a Federally controlled facility or military installation.

Subcontracts. The Contractor shall include the substance of this clause, including this paragraph (d), in subcontracts, including subcontracts for commercial items, when subcontractor performance requires routine physical access to a Federally-controlled facility or military installation.

OPERATION SECURITY (OPSEC)

It is DoD policy according to DoD Directive 5205.02E, "DoD Operations Security (OPSEC) Program," June 20, 2012, as amended to establish and maintain OPSEC programs to ensure national security-related missions and functions are protected.

Training: Contractor employees shall comply with all DoD OPSEC requirements and complete "OPSEC Awareness for Military Members, DoD Employees and Contractor" training within 30 days of onboarding the contract and annual refresher training thereafter. Training shall be completed through a DoD sponsored and certified computer or web-based learning instruction available at <https://securityawareness.usalearning.gov/opsec/index.htm>.

The contractor will submit certificates of completion for each affected contractor employee and subcontractor employee to the COR or to the contracting officer, if a COR is not assigned, within 30 calendar days after training is completed by all employees and subcontractor personnel.

START-UP PERIOD

All contractor resource onboarding documents must be submitted via the prime contractor. The prime contractor shall make all necessary preparations to assume full responsibility for productive performance as of the performance start date.

Definition of "productive":

- a. OF-306 signed by contractor employee
- b. FD-258 Fingerprint Card (Contingent upon availability of electronic fingerprinting submission)
- c. Completed Electronic Investigation (e-QIP)
- d. All contractor employees with need for a Common Access Card (CAC) must have an active Defense Information System for Security (DISS) profile.
- e. Common Access Card (CAC)
- f. DISS Visit Request submitted (Contingent upon classification of work being performed, Confidential, Secret, Top Secret).

Note (1): Invoicing by the contractor will begin as of the commencement of the performance period of services and no reimbursement will be paid by the government for efforts expended during the start-up period.

Note (2): Foreign Nationals are not allowed access to the functional/system side of Enterprise Resource Planning (ERP).

ACCESS TO DOD INFORMATION TECHNOLOGY (IT) SYSTEM

In accordance with DON CIO Memorandum (IT LEVEL DESIGNATION ON DD FORM 2875 SYSTEM AUTHORIZATION ACCESS REQUEST) 08 September 2020, contractor employees who require access to Department of the Navy (DoN) or DoD networks are categorized as Privileged, Enhanced, or Authorized users. All user level accesses may include positions which require access to Controlled Unclassified Information (CUI). CUI includes sensitive information protected under the Privacy Act, to include Protected Health Information (PHI). IT System levels are determined by the requiring activity's Command Information System Security Manager (ISSM)/Information Assurance Manager (IAM).

Contractor employees requiring privileged access, (when specified by the terms of the contract) require a Tier 5 (T5) or T5R equivalent investigation, which is a higher level investigation than the Tier 3 (T3) and T3R described below. Due to the privileged system access, an investigation suitable for High Risk national security positions is required. Individuals who have access to system control, monitoring, or administration functions (e.g. system administrator, database administrator) require training and certification to Information Assurance (IA) Technical Level 1, and must be trained and certified on the Operating System or Computing Environment they are required to maintain.

Contractors requiring Enhanced access, (when specified by the terms of the contract) require a T3, T3R, or equivalent investigation, which is a higher level investigation than the Tier 1 (T1) described below. Due to the enhanced system access, an investigation suitable for Moderate Risk national security positions is required.

Access to sensitive IT systems is contingent upon a favorably adjudicated background investigation. When access to IT systems is required for performance of the contractor employee's duties, such employees shall in-process with the Navy CSM and ISSM/IAM manager upon arrival to the Navy command and shall out-process prior to their departure at the completion of the individual's performance under the contract. Completion and approval of a System Authorization Access Request Navy (SAAR-N) form is required for all individuals accessing Navy IT resources. The decision to authorize access to a government IT system/network is inherently governmental. The contractor supervisor is not authorized to sign the SAAR-N; therefore, the government employee with knowledge of the system/network access required or the Contracting Officers Representative (COR) shall sign the SAAR-N as the supervisor.

The SAAR-N shall be forwarded to the CSM upon contractor employee acquiring a Common Access Card (CAC) credential. Failure to obtain a CAC credential may result in delaying the individual's start date.

When required to maintain access to required IT systems or networks, the contractor shall ensure that all contractor employees requiring access complete annual Cyber Awareness training, and maintain a current requisite background investigation. The contractor's security representative shall contact the CSM for guidance when reinvestigations are required.

INTERIM ACCESS

The CSM may authorize issuance of a DoD CAC and interim access to a DoN or DoD unclassified computer/network upon a favorable review of the investigative questionnaire and advance favorable fingerprint results. When the results of the investigation are received and a favorable determination is not made, the contractor employee working on the contract under interim access will be denied access to the computer network and this denial will not relieve the contractor of his/her responsibility to perform.

DENIAL OR TERMINATION OF ACCESS

The potential consequences of any requirement under this clause including denial or termination of physical or system access in no way relieves the contractor from the requirement to execute performance under the contract within the timeframes specified in the contract. Contractors shall plan ahead in processing their employees and subcontractor employees. The contractor shall insert this clause in all subcontracts when the subcontractor is permitted to have unclassified access to a federally controlled facility, federally-controlled information system/network and/or to government information, meaning information not authorized for public release.

ACCESS TO CONTROLLED UNCLASSIFIED INFORMATION

Safeguarding sensitive unclassified information is critical to achieve NAVSUP Modernization efforts and deliver cutting-edge and uncompromised capabilities. The Secretary of Defense's operations security (OPSEC) campaign plan stresses the importance of protecting controlled unclassified information (CUI). CUI encompasses OPSEC, critical technology, intelligence, and personally identifiable information that, if not properly identified, marked, and controlled, could impair NAVSUP's ability to conduct its mission. Contractor employees with access to Controlled Unclassified Information (CUI) shall comply with DoDI 5200.48 - Controlled Unclassified Information (CUI) and complete DoD approved initial and annual refresher CUI training.

- a. Whenever Government provides CUI to, or CUI is generated by, non-DoD entities, all CUI records must be handled as required by the approved mandatory disposition authority.
- b. All CUI records must follow the approved mandatory disposition authority whenever the Government provides CUI to, or CUI is generated by, non-DoD entities in accordance with Section 1220-1236 of Title 36, CFR, Section 3301a of Title 44, U.S.C., and the DoDI 5200.48.
- c. Contractor employees shall monitor CUI aggregation and compilation based on the potential to generate classified information pursuant to security classification guidance addressing the accumulation of unclassified data or information
- d. Contractor employees shall submit unclassified government information for review and approval for release in accordance with the Standard DoD Component Processes, DoDI 5230.09, and DoDM 5205.07, Volume 1.

CONTRACTOR'S SECURITY REPRESENTATIVE

The contractor shall designate an employee to serve as the contractor's security representative. Within three (3) work days after contract award, the contractor shall provide to the requiring activity's Security Manager and the Contracting Officer, in writing, the name, title, address and phone number for the contractor's security representative. The contractor's security representative shall be the primary point of contact on any security matter. The contractor's security representative shall not be replaced or removed without prior notice to the Contracting Officer and CSM.

BACKGROUND INVESTIGATION REQUIREMENTS AND SECURITY APPROVAL PROCESS FOR CONTRACTORS ASSIGNED TO NATIONAL SECURITY POSITIONS OR PERFORMING SENSITIVE DUTIES

Navy security policy requires that all positions be given a sensitivity value based on level of risk factors to ensure appropriate protective measures are applied. If the Security Office validates the contractor's position is Non-Critical Sensitive or if the IT system user level is determined to be Enhanced, at a minimum, each contractor employee must be a US citizen and have a favorably completed T3, T3R, or equivalent investigation to obtain a favorable determination for assignment to a non-critical sensitive or Enhanced position. The investigation consists of a standard National Agency Check and a FBI fingerprint check plus law enforcement checks and credit check. Each contractor employee filling a non-critical sensitive or Enhanced position is required to complete:

SF-86 Questionnaire for National Security Positions (or equivalent Office of Personnel Management (OPM) investigative product)

Two FD-258 Applicant Fingerprint Cards or electronic fingerprint submission (preferred))

Original Signed Release Statements

Failure to provide the required documentation at least thirty (30) days prior to the individual's start date shall result in delaying the individual's start date. Background investigations shall be reinitiated as required to ensure investigations remain current (not older than ten (10) five (5) years) throughout the contract performance period. The Contractor's Security Representative shall contact the CSM for guidance when reinvestigations are required.

Regardless of their duties or IT access requirements ALL contractor employees shall in-process with the CSM upon arrival to the command and shall out-process prior to their departure at the completion of the individual's performance under the contract. Employees requiring IT access shall also check-in and check-out with the Navy Command's ISSM/IAM. Completion and approval of a System Authorization Access Request Navy (SAAR-N) form is required for all individuals accessing Navy IT resources. The SAAR-N shall be forwarded to the CSM upon the contractor employee acquiring a Common Access Card (CAC) credential. Failure to obtain a CAC credential or provide the required documentation shall result in delaying the individual's start date.

The contractor shall ensure that each contract employee requiring access to IT systems or networks complete annual Cyber Awareness training, and maintain a current requisite background investigation. Contractor employees shall accurately complete the required investigative forms prior to submission to the CSM. The CSM will review the submitted documentation for completeness prior to submitting it to the OPM. Potential suitability or security issues identified may render the contractor employee ineligible for the assignment. An unfavorable determination is final (subject to SF-86 appeal procedures) and such a determination does not relieve the contractor from meeting any contractual obligation under the contract. The CSM will forward the required forms to OPM for processing. Once the investigation is complete, the results will be forwarded by OPM to the DoD Central Adjudication Facility (CAF) for a determination.

For classified contracts, if the contractor employee already possesses a current favorably adjudicated investigation, the contractor shall submit a Visit Access Request (VAR) via the Defense Information Security System (DISS). If the contractor employee does not have a current favorably adjudicated investigation, the contractor shall submit the Visit Access Request in DISS until the contractor employee has at a minimum an interim clearance. If the contract only requires access to unclassified information, even if the contractor takes a DISS "owning" role over the contractor employee, the Navy Command will also take a DISS "owning" role over the contractor employee during the hiring process and for the duration of assignment under that contract. If the contract requires access to classified information, the contractor's Facility Security Office (FSO) will take a DISS "ownership" role and the Navy command will take a DISS "servicing" role during the hiring process and the duration of assignment under that contract. All VARs requires annual renewal for the duration of the employee's performance under the contract.

BACKGROUND INVESTIGATION REQUIREMENTS AND SECURITY APPROVAL PROCESS FOR CONTRACTORS ASSIGNED TO OR PERFORMING NON-SENSITIVE DUTIES

Contractor employee whose work is unclassified and non-sensitive (e.g., performing certain duties such as lawn maintenance, vendor services, etc...) and who require physical access to publicly accessible areas to perform those duties shall meet the following minimum requirements:

Must be either a U.S. citizen or a U.S. permanent resident with a minimum of 3 years of legal residency in the U.S. (as required by the Deputy Secretary of Defense DTM 08-006 or its subsequent DoD Instruction (INST)) and
Must have a favorably completed NACI or T1 investigation or equivalent including a FBI fingerprint check prior to installation access.
To be considered for a favorable trustworthiness determination, the CSR must submit for all employees each of the following:

SF-85 Questionnaire for Non-Sensitive Positions

Two FD-258 Applicant Fingerprint Cards (or the preferred method - electronic fingerprint submission)

Original Signed Release Statements

The contractor shall ensure each individual employee has a current favorably completed NACI or T1 equivalent investigation, or ensure successful FBI fingerprint results have been gained and investigation has been processed with OPM.

Failure to provide the required documentation at least thirty (30) days prior to the individual's start date may result in delaying the individual's start date.

Section J - List of Attachments

Attachments:

Number	Attachment Name	Attachment Description	Reference Identifier	Date
01	ECS PWS 8 April 2026	Performance Work Statement		22 Apr 2026
02	PWS Attachment A TCCD ECS_(Rev-E, IC) 28Jun2024			25 Apr 2026
03	PWS Attachment C CENSECFORINST 1540.1D (Training Policy and Guidance)			25 Apr 2026
04	PWS Attachment K CENSECFORNOTE 1500 (Mandatory Recurring Training)			25 Apr 2026
05	PWS Attachment N CENSECFORINST 5100.1 (High Risk Training Safety)			25 Apr 2026
06	WD 2024-0084 Rev 7	Wage Determination		23 Apr 2026
07	Contractor Discrepancy Report (CDR)			22 Apr 2026
08	Past Performance Information Form			25 Apr 2026
09	Past Performance Report Form			25 Apr 2026

Section K - Representations, Certification, & Other Statements

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation 2026-00038)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	Oct 2016		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022		
252.225-7966	Prohibition Regarding Russian Fossil Fuel Business Operations-Representation (Deviation 2024-O0006, Revision 1)	Mar 2024	Deviation 2024-O0006	Mar 2024
252.225-7973	Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems—Representation. (DEVIATION 2024-O0014)	Aug 2024	Deviation 2024-O0014	Aug 2024

FAR Clauses Incorporated by Full Text

52.209-7 Information Regarding Responsibility Matters. (Deviation 2026-O0038) (Feb 2026)

INFORMATION REGARDING RESPONSIBILITY MATTERS (FEB 2026) (DEVIATION 2026-O0038)

(a) *Definitions.* As used in this provision-

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (*e.g.*, Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means-

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (*e.g.*, general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ☐ has ☐ does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

- (i) In a criminal proceeding, a conviction.
- (ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.
- (iii) In an administrative proceeding, a finding of fault and liability that results in-
 - (A) The payment of a monetary fine or penalty of \$5,000 or more; or
 - (B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

52.229-11 Tax on Certain Foreign Procurements-Notice and Representation.

(Jun 2020)

TAX ON CERTAIN FOREIGN PROCUREMENTS-NOTICE AND REPRESENTATION (JUN 2020)

(a) *Definitions.* As used in this provision-

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area of the United States.

United States person as defined in 26 U.S.C. 7701(a)(30) means

- (1) A citizen or resident of the United States;
- (2) A domestic partnership;
- (3) A domestic corporation;
- (4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and
- (5) Any trust if-
 - (i) A court within the United States is able to exercise primary supervision over the administration of the trust; and
 - (ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror may claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service (IRS) Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that

- (1) It ☐ is ☐ is not a foreign person; and
- (2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that-I am claiming on the IRS Form W-14 ☐ a full exemption, or ☐ partial or no exemption [*Offeror must select one*] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then-

- (1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and
- (2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the IRS as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.204-7017 Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation. (May 2021)

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions.* "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition.* Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation.* If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☐ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures.* If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

252.204-7998 Alternate A, Annual Representations and Certifications. (DEVIATION 2026-O0043) (Feb 2026) Alternate A Deviation 2026-O0043 (Feb 2026)

Alternate A, Annual Representations and Certifications (DEVIATION 2026-O0043)(FEB 2026)

Include the following paragraphs (e), (f), and (g) in the provision at FAR 52.204-7:

(e)(1) If the provision at FAR 52.204-7, System for Award Management - Registration, is included in this solicitation, paragraph (g) of this provision applies.

(2) If the provision at FAR 52.204-7, System for Award Management - Registration, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (g) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

☐ (i) Paragraph (g) applies.

☐ (ii) Paragraph (g) does not apply and the Offeror has completed the individual representations and certifications in the solicitation.

(f)(1) The following representations or certifications in the SAM database are applicable to this solicitation as indicated:

(i) 252.204-7016, Covered Defense Telecommunications Equipment or Services--Representation. Applies to all solicitations.

(ii) 252.216-7008, Economic Price Adjustment--Wage Rates or Material Prices Controlled by a Foreign Government. Applies to solicitations for fixed-price supply and service contracts when the contract is to be performed wholly or in part in a foreign country, and a foreign government controls wage rates or material prices and may during contract performance impose a mandatory change in wages or prices of materials.

(iii) 252.225-7042, Authorization to Perform. Applies to all solicitations when performance will be wholly or in part in a foreign country.

(iv) 252.225-7049, Prohibition on Acquisition of Certain Foreign Commercial Satellite Services--Representations. Applies to solicitations for the acquisition of commercial satellite services.

(v) 252.225-7050, Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism. Applies to all solicitations expected to result in contracts of \$150,000 or more.

(vi) 252.229-7012, Tax Exemptions (Italy)--Representation. Applies to solicitations when contract performance will be in Italy.

(vii) 252.229-7013, Tax Exemptions (Spain)--Representation. Applies to solicitations when contract performance will be in Spain.

(2) The following representations or certifications in SAM are applicable to this solicitation as indicated by the Contracting Officer: [*Contracting Officer check as appropriate.*]

☐ (i) 252.209-7002, Disclosure of Ownership or Control by a Foreign Government.

☐ (ii) 252.225-7000, Buy American--Balance of Payments Program Certificate.

☐ (iii) 252.225-7020, Trade Agreements Certificate.

☐ Use with Alternate I.

☒ (iv) 252.225-7031, Secondary Arab Boycott of Israel.

☐ (v) 252.225-7035, Buy American--Free Trade Agreements--Balance of Payments Program Certificate.

☐ Use with Alternate I.

☐ Use with Alternate II.

☐ Use with Alternate III.

☐ Use with Alternate IV.

☐ Use with Alternate V.

☐ (vi) 252.226-7002, Representation for Demonstration Project for Contractors Employing Persons with Disabilities.

☐ (vii) 252.232-7015, Performance-Based Payments--Representation.

(g) The Offeror has completed the annual representations and certifications electronically via the SAM website at <https://www.sam.gov>. After reviewing the SAM database information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in FAR 52.204-7 and paragraph (f) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer, and are incorporated in this offer by reference (see FAR 4.203-1); except for the changes identified below [*Offeror to insert changes, identifying change by provision number, title, date*]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR/DFARS provision No.	Title	Date	Change

<u> </u>	<u> </u>	<u> </u>	<u> </u>
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Any changes provided by the Offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications located in the SAM database.

(End of provision)

Section L - Instructions, Conditions, & Notices to Offerors or Quoters

The Government intends to award a Firm Fixed Price (FFP) task order as a result of this solicitation in accordance with FAR 16.507. Award will be made to that offeror whose proposal is most advantageous to the Government under the selection criteria set forth in this solicitation. The Government intends to evaluate proposals and award a task order based on initial proposals. Therefore, the offeror's initial proposal should contain the offeror's best terms from a technical, past performance, and price standpoint. The Government may contact any or all offerors with questions concerning their responses as permitted under FAR Part 16. The Government reserves the right to award a FFP task order to other than the lowest priced offeror; award a FFP task order without exchanges; or award a FFP task order after exchanges, whichever is in the best interest of the Government.

Offerors are hereby instructed that, regardless of any language that may be used in this solicitation, the Government is NOT conducting this procurement under FAR Part 15. This procurement is being conducted under FAR Subpart 16.5.

QUESTIONS: Offerors may submit questions regarding clarification of solicitation requirements via email to Alexandria McCune at Alexandria.e.mccune.civ@us.navy.mil and Amy Barnes at amy.m.barnes14.civ@us.navy.mil. It is requested that all questions be received by 04 May 2026, as time may not permit responses to questions received after that date to be prepared and issued prior to the receipt of proposals.

INSTRUCTIONS FOR SUBMISSIONS OF PROPOSALS:

(1) Proposals shall be submitted electronically no later than the due date of the solicitation via the PIEE Solicitation Module. Offerors shall comply with the detailed instructions for the format and content of the proposals contained herein; proposals that do not comply may be considered unacceptable and may render the proposal ineligible for award.

(2) All submissions and attachments shall be in Microsoft Office Word or PDF with the exception of pricing information which may be submitted utilizing Microsoft Office Excel. Submissions are page limited to the maximum number of pages as defined below. These page limitations are inclusive of the executive summary and any charts, diagrams, and/or other graphics. Graphics (including tables) in the proposal may use Times New Roman font with 8-point size type or larger. Each "page" is defined as one sheet, 8 1/2 " x 11", with at least one inch margins on all sides, using Times New Roman font with a point size of 12 or greater. Lines shall, at a minimum, be selected as single-spaced in Microsoft Word with Microsoft Word Normal character spacing. Pages shall be consecutively numbered. The offeror is permitted to submit no more than one page for each of the following, which will not be included in the page count: a cover sheet, list of tables, list of figures, list of acronyms, compliance matrix, table of contents, tabs, and dividers.

GENERAL:

Proposals shall include the following legend on each page:

Source Selection Information - FAR 2.101 and FAR 3.104

PROPOSAL CONTENT:

The proposal should contain the following items in addition to other information required by this solicitation. The cover page should indicate the following:

- Request for Proposal Number
- Volume Number (I or II)
- Name and Address of Offeror, CAGE Code, SAM Unique Entity ID, and applicable Tax I.D. Number (TIN)
- Point of Contact name, telephone number, and email address
- Proposal valid for 180 days after solicitation closing

Proposals shall be prepared in two (2) separate and distinct volumes (attachments):

- **Volume I - Non-Price Proposal**

o Factor I: Technical Approach

(S) Sub-Factor I - Performance and Management Approach

(S) Sub-Factor II - Staffing Approach

(S) Sub-Factor III - Mobilization Plan

o Factor II: Past Performance

- **Volume II - Price Proposal**

o Factor III: Price

(4) Proposal Page Limitations

Volume I - Non-Price Proposal - The following page limitations are established:

Title	Page Limit*
Non-Price Proposal - Factor I: Technical Approach	25 Pages
Non-Price Proposal - Factor II: Past Performance	12 Pages

Pages submitted in excess of the page limitations described above will not be evaluated.

* Page limits represent the maximum pages the Government will evaluate and are not construed as de facto standards for the amount of material expected in the proposal.

Volume II - Price Proposal - is not page limited; however, the Price Proposal is to be strictly limited to price information and completed solicitation documents as described in the General Section at the beginning of this text.

Title	Limit*
Price Proposal - Factor III	No limit

* Page limits represent the maximum pages the Government will evaluate and are not construed as de facto standards for the amount of material expected in the proposal.

1. Volume I: Non-Price Proposal

Factor I - Technical Approach:

This submission shall contain the following portion of the proposal, to include all data and information required for the evaluation of the below mentioned sub-factors, excluding any reference to the pricing aspects of each offer.

Sub-Factor I - Performance and Management Approach:

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1. The offeror shall provide a performance and management approach that demonstrates its understanding of and capability to meet the requirements stated in Section 4-1 thru 4-8 (except Section 4-5 which is included in Sub-Factor II); Section 5-1 thru 5-2.13, Section 6-2; Section 9, Section 10, and Section 11 of the corresponding PWS.
2. Offeror shall detail how this effort will be managed within their corporate organizational structure and how this will align task order execution with CENSECFOR's organizational structure outlined in Section 1-8. Offerors shall provide an organizational diagram/chart to demonstrate alignment, lines of authority and communication both within the offeror's organization and externally to CENSECFOR's organization.
3. Offeror shall identify performance risks and corresponding mitigations for the following critical PWS Sections, to include, but not limited to Sections 4-1 thru 4-8 (except Section 4-5, which is covered in Sub-Factor II); Section 5-1 thru 5-2.13, Section 9 and Section 10 and explain whether the techniques and actions identified for risk mitigation have been successfully used by the offeror.

Sub-Factor II -Staffing Approach:

The offeror shall provide a staffing approach which describes: the methodology for recruitment and retention of experienced and qualified personnel as detailed in PWS Section 4-5 (in its entirety) and/or the incumbent workforce; historical data to substantiate achievements in past recruiting efforts and low attrition rates; replacing qualified personnel with equally qualified personnel within the specified timeframe; and for retaining personnel using approaches beyond offering competitive salaries and benefits. Specific areas to be addressed:

1. The offeror shall provide a staffing approach that demonstrates its understanding of and capability to meet the staffing requirements stated in Section 1-4 and Section 4-5 of the corresponding PWS.
2. Identify specific solutions, resources or incentives to minimize turnover.
3. Identify specific solutions, resources or incentives to maximize competency and proficiency of the instructor cadre.
4. Describe the offeror's plan to replace qualified instructors with equally qualified instructors within the specified timeframe, specifically:
 - a. Achieve and maintain 100% fully qualified instructors on deck throughout the life of the task order.
 - b. Achieve and maintain <10% Instructor turnover within any given (6) month period.
 - c. Identify specific solutions or incentives to maintain 100% compliance with Instructor Replacement requirement of Section 3-1.7.1.

1. The offeror shall provide their historical attrition rates for the past three (3) years for similar work.

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Sub-factor III - Mobilization Plan:

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The offeror shall propose a mobilization plan that demonstrates a clear and feasible plan for meeting the requirements outlined in PWS Section 7 and achieving the capability for full task order performance within the mobilization period. Offeror shall identify mobilization risks and corresponding mitigations for the following critical areas:

1. Challenges in recruiting/hiring the corresponding numbers of qualified Instructors toward meeting PWS requirements at the end of the mobilization period.
2. After mobilization has begun, contracted Instructors either cannot qualify in accordance with Section 4 of the PWS or cannot produce acceptable documentation of required qualifications and certifications in accordance with PWS Section 4 and Section 5.

***The Technical Approach submission is limited to 25 pages ***

Factor II: Past Performance

To demonstrate its past performance, the offeror shall identify up to three (3) of its most relevant contracts performed within five (5) years of the solicitation issuance date. Those contracts must also reflect one year of completed performance by the closing date of the solicitation. One (1) year of completed performance is defined as twelve (12) consecutive months of performance completed by the closing date of the solicitation. References with less than twelve (12) completed, consecutive months of service by the closing date of the solicitation will not be considered. Offerors shall provide a detailed explanation demonstrating the relevance of the contracts to the requirements of the solicitation. Offerors shall also cite the task sections / subsections of the PWS to which the past performance is relevant for each of the three (3) contracts.

For purposes of this solicitation, a contract is defined as a single contract or a single task order placed under an ID/IQ contract, a Blanket Purchase Agreement (BPA), or a Federal Supply Schedule. Offerors shall not submit the ID/IQ contract, FSS contract, or BPA itself as a reference. Offerors may submit a combination of no more than three (3) delivery orders (DOs), task orders (TOs), technical direction letters (TDLs), and/or technical area tasks (TATs) placed under an ID/IQ or BPA as one of the three examples of past performance. Such a combination must also meet the requirements stated above: each individual example in the combination must have been performed within five (5) years of the solicitation issuance date and demonstrate at least one (1) year of completed performance by the closing date of the solicitation. If a combination of DOs, TOs, TDLs and or TATs are used as a past performance example, the offeror shall state the specific experience claimed, period of performance, and dollar value of each. A Past Performance example that does not provide the level of detail required may not be evaluated. No more than one combination of DOs, TOs, TDLs and or TATs is permitted in the past performance submittal.

If a proposed subcontractor's past performance is provided as part of the three (3) of its most relevant contracts or efforts, the percentage and type of work to be done by the subcontractor on the solicitation requirement must be stated. The offeror's submittal shall also detail clearly the aspects of the work in the solicitation that the subcontractor is proposed to perform. A Past Performance example which does not detail clearly the aspects of the work in the solicitation that the subcontractor is proposed to perform may not be evaluated.

If the prime offeror or intended subcontractor/partner submits a past performance example in which it served as a subcontractor, the prime/sub/partner shall detail clearly the work that it performed and the magnitude (dollar value) of that subcontracted work only. A Past Performance example that does not differentiate between the overall contract effort and the subcontractor effort may not be evaluated.

The past performance of subcontractors who will be performing major or critical aspects of the solicitation will be considered as highly as a prime contractor's past performance.

Failure of offerors to provide the required information and level of specificity may result in the contract reference not being evaluated.

With respect to joint ventures, the procuring activity will consider work done individually by each member of the joint venture as well as any work done by the joint venture itself previously. Joint venture references must meet the temporal requirements described in section L (within five years and a year of completed performance). Additionally, if a joint venture member submits a past performance reference, the joint venture member shall detail clearly the work that it performed in that effort and the magnitude (dollar value) of that work. A reference that does not differentiate between the overall contract effort and the joint venture member's effort for that reference may not be evaluated. The past performance of a joint venture member who will be performing major or critical aspects of the solicitation will be considered as highly as the joint venture's past performance.

The offeror shall complete a "Past Performance Information Form" for each reference submitted. The form is an attachment to the solicitation.

In addition to the information requested above, offerors shall contact their past performance references and request that each reference complete the Past Performance Report Form attached to the solicitation and e-mail the completed survey form directly to Alexandria McCune at alexandria.e.mccune.civ@us.navy.mil and Amy Barnes at amy.m.barnes14.civ@us.navy.mil by the DUE DATE OF THIS SOLICITATION. The Government reserves the right to consider past performance report forms received after the due date of the solicitation and to contact references for verification or additional information.

The Past Performance submission is limited to 12 pages

2. Volume II: Price Proposal

Factor III: Price

For the purpose of preparing a price proposal, the offeror shall assume that the basic period of performance shall be for a one, 12-month base year, inclusive of a 45-day mobilization period, and four, one-year options.

Period	Dates
Mobilization	18 July 2026 - 31 August 2026
Base Period	1 September 2026 - 17 July 2027
Option Year I	18 July 2027 - 17 July 2028
Option Year II	18 July 2028 - 17 July 2029
Option Year III	18 July 2029 - 17 July 2030
Option Year IV	18 July 2030 - 17 July 2031

The Price Proposal in Volume II shall include the completed solicitation documents. The price proposal shall include all elements of price and such other price information considered appropriate to support the offeror's proposal. The price information shall be completed in accordance with the following:

- a. A completed section B "Supplies or Services and Price" submitted electronically via the PIEE Solicitation Module. CLINs shall be inclusive of all support pricing, excluding travel as designated below.
- b. The price proposal shall include all supporting data to clearly show how the fully-burdened labor prices were developed. This information shall include a breakdown of the labor categories, labor hours, and labor rates anticipated and should be submitted in Microsoft Excel format.
- c. A completed and signed page 1 of solicitation and any amendments.

d. Unless completed in SAM, RFP Section, Representation, Certification and Other Statements of Vendors - completed by the offeror. This includes the certification requirements of FAR 52.204-24, FAR 52.204-26, DFARS 252.204-7016, and DFARS 252.204-7017.

e. Travel costs are anticipated; therefore, the Government has included travel amounts for each period of performance. All offerors are to include the "Not to Exceed" travel amounts provided in the chart below for each identified travel CLIN.

Offerors shall insert the following Government estimated travel plug numbers in their proposed price in addition to any applicable General and Administrative (G&A) and/or Overhead (OH) rate in accordance with FAR Part 31 in their accounting system. Only G&A and/or OH indirect costs are allowable if an offeror's accounting system automatically applies it, no profit or fee is allowed.

NOTE: If no G&A and/or OH are proposed, it will be determined that the offeror does not intend on applying any applicable indirect cost to provided ODCs.

Description	Base Period	Option Year I	Option Year II	Option Year III	Option Year IV
Travel	\$2,000.00	\$2,000.00	\$2,000.00	\$2,000.00	\$2,000.00

All price and price supporting information shall be contained in the price proposal. No price information shall be included in any other Volume including cover letters. The offeror is responsible for submitting sufficient information to enable the Government to fully evaluate its price proposal.

****The price submission is not page limited, but is strictly limited to price information.****

The completion and submission of the above items will constitute an offer (proposal) and will indicate the offeror's unconditional assent to the terms and conditions of this RFP and any attachments hereto. Alternate proposals are not authorized.

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	Jan 2017		
52.204-7	System for Award Management-Registration. (Deviation 2026-O0038)	Feb 2026		
52.233-2	Service of Protest. (Deviation 2026-O0038)	Feb 2026		
52.237-1	Site Visit.	Apr 1984		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	Mar 2023		

FAR Clauses Incorporated by Full Text

52.252-1 Solicitation Provisions Incorporated by Reference. (Feb 1998)

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be

completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52> and https://www.acq.osd.mil/dpap/dars/dfars_far_overhaul_class_deviations.html

(End of provision)

52.252-5 Authorized Deviations in Provisions.

(Nov 2020)

Authorized Deviations in Provisions (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any DFARS (48 CFR Chapter 2) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.215-7992 Only One Offer. (DEVIATION 2026-O0048)

(Mar 2026) Deviation 2026-O0048 (Mar 2026)

ONLY ONE OFFER (DEVIATION 2026-O0048) (MAR 2026)

(a) *Cost or pricing data requirements.* After initial submission of offers, if the Contracting Officer notifies the Offeror that only one offer was received, the Offeror agrees to--

(1) Submit any additional cost or pricing data that is required in order to determine whether the price is fair and reasonable (10 U.S.C. 3705) or to comply with the statutory requirement for certified cost or pricing data (10 U.S.C. 3702); and

(2) Except as provided in paragraph (b) of this provision, if the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-2(b)(2) through (5) does not apply, certify all cost or pricing data in accordance with paragraph (c) of DFARS provision 252.215-7994, Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data, of this solicitation.

(b) *Canadian Commercial Corporation.* If the Offeror is the Canadian Commercial Corporation, certified cost or pricing data are not required. If the Contracting Officer notifies the Canadian Commercial Corporation that additional data other than certified cost or pricing data are required in accordance with DFARS 225.870-4(c), the Canadian Commercial Corporation shall obtain and provide the following:

(1) Profit rate or fee (as applicable).

(2) Analysis provided by Public Works and Government Services Canada to the Canadian Commercial Corporation to determine a fair and reasonable price (comparable to the analysis required at 15.404).

(3) Data other than certified cost or pricing data necessary to permit a determination by the U.S. Contracting Officer that the proposed price is fair and reasonable [*U.S. Contracting Officer to provide description of the data required in accordance with FAR 15.403-1 with the notification*].

(4) As specified in FAR 15.403-1(d), an offeror who does not comply with a requirement to submit data that the U.S. Contracting Officer has deemed necessary to determine price reasonableness or cost realism is ineligible for award unless the head of the contracting activity determines that it is in the best interest of the Government to make the award to that offeror.

(c) *Subcontracts.* Unless the Offeror is the Canadian Commercial Corporation, the Offeror shall insert the substance of this provision, including this paragraph (c), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

Section M - Evaluation Factors for Award

The Government intends to award a FFP task order to the responsible Offeror whose proposal represents the best value after evaluation in accordance with the factors in the solicitation by utilizing the Tradeoff Source Selection process. The Offeror's proposal shall be in the form prescribed, and shall contain a response to each of the areas identified in Section L of the solicitation.

All proposals will be reviewed for timeliness. Timely proposals will be reviewed for compliance to the solicitation. If the proposal is not compliant to the solicitation, it will not be evaluated and the Offeror will be notified that the proposal is non-responsive.

The Government intends to evaluate proposals and award a task order based on initial proposals. Accordingly, the offeror should submit its most favorable terms from a technical approach, past performance, and price standpoint. The Government reserves the right to award a task order to other than the lowest priced offeror; award a firm fixed priced task order without exchanges; or award a firm fixed priced task order after exchanges, whichever is in the best interest of the Government. Offerors simply providing general statements or paraphrasing/parroting the PWS in whole or in any part may result in a rating of unacceptable.

The evaluation of proposals will consider the Non-Price Proposal to be significantly more important than the Price Proposal. Within the Non-Price Proposal, Technical Approach is significantly more important than Past Performance, and the Factor I Sub-factors are in descending order of importance.

Initially, proposals shall be ranked according to price, inclusive of all option pricing. An offeror's proposed pricing will be determined by adding all extended amounts for the CLINs in RFP Section B.

If the lowest priced offeror is evaluated to have a Factor I rated as 'Outstanding', AND a Factor II Past Performance Confidence Assessment rating of 'Substantial Confidence', that offeror represents the best value for the Government and the evaluation process stops at this point. Award shall be made to that offeror without further consideration of any other proposals. However, if the lowest priced offeror is not evaluated to have a Factor I rated as 'Outstanding', AND a 'Substantial Confidence' Past Performance Confidence Assessment rating, the next-lowest priced offeror will be evaluated. The evaluation process will continue (in order of price from lowest to highest) until a proposal is evaluated to have a Factor I rated as 'Outstanding', AND a 'Substantial Confidence' Past Performance Confidence Assessment rating. The Government shall then make an integrated best-value award decision between that proposal rated with a Factor I rated as 'Outstanding', AND a 'Substantial Confidence' Past Performance Confidence Assessment rating and all lower priced proposals.

If no proposals are evaluated with a Factor I rated as 'Outstanding', AND a 'Substantial Confidence' Past Performance Confidence Assessment rating, the Contracting Officer shall make an integrated assessment best-value award decision from among the offerors rated with at least 'Acceptable' for Factors I, and 'Neutral Confidence' or better for Factor II - Past Performance.

Although price is not the most important evaluation factor, it has the potential to become more significant during the evaluation process. The degree of importance of price will increase with the degree of equality of the proposals in relation to the other factors on which selection is to be based. The importance of price will also increase when a proposal's price is so significantly high as to diminish the value to the Government that might be gained under the other aspects of the proposal. If, at any stage of the evaluation, all Offerors are determined to have submitted equal, or virtually equal, non-price proposals, price could become the factor in determining which Offerors shall receive the award.

Volume I: Non-Price Proposal Evaluation Criteria

Factor I - Technical Approach

The purpose of the technical factor and sub-factors is to assess the offeror's proposed approach to satisfy the Government's requirements. The evaluation of risk is related to the assessment of the offeror's proposed technical submittal. Risk, as it pertains to source selection, is the potential for unsuccessful contract performance. The consideration of risk assesses the degree to which an offeror's proposed approach to achieving the technical factor involves risk of disruption of schedule, increased cost or degradation of performance, the need for increased Government oversight, and the likelihood of unsuccessful contract performance. Risk will be considered in the evaluation of the technical factor and sub-factors.

Sub-factor I - Performance and Management Approach:

The offeror's overall performance approach will be evaluated on its feasibility, its comprehensiveness, and the degree to which the offeror clearly demonstrates how the requirements will be successfully accomplished. Specifically, offers will be evaluated on:

1. The offeror will be evaluated on how well it demonstrated an understanding of and capability to meet the requirements stated in Section 4-1 thru 4-8 (except Section 4-5 which is included in Sub-Factor II); Section 5-1 thru 5-2.13, Section 6-2; Section 9, Section 10, and Section 11 of the corresponding PWS.
2. Offeror will be evaluated on their ability to clearly detail how this effort will be managed within their corporate organizational structure and how this will align in task order execution with CENSECFOR's organizational structure as outlined in Section 1-8. Offeror will be evaluated on their organizational diagram/chart clearly details/demonstrates alignment, lines of authority, and communication both within the offeror's organization and externally to CENSECFOR's organization.
3. The offerors will be evaluated on their understanding of the requirement as demonstrated through their ability to identify meaningful performance risks and provide corresponding feasible and appropriate mitigation strategies for the following critical PWS Sections, to include, but not limited to: Sections 4-1 thru 4-8 (except Section 4-5, which is covered in Sub-Factor II); Section 5-1 thru 5-2.13, Section 9 and Section 10 and explain whether the techniques and actions identified for risk mitigation have been successfully employed by the offeror.

Sub-factor II - Staffing Approach:

The offeror's overall staffing approach will be evaluated on its feasibility, comprehensiveness, and the degree to which the offeror demonstrates an understanding of, and capability to successfully accomplish, the staffing approach requirements of the solicitation. Offeror will be evaluated on their proposed recruitment and retention plan and their demonstrated methodology for recruiting and hiring personnel with the required experience, background and qualifications; historical data to substantiate achievements in past recruiting efforts and low attrition rates; replacing qualified personnel with equally qualified personnel within the timeframe specified in Section 3-1.7.1 of the PWS; and for retaining personnel using approaches beyond offering competitive salaries and benefits. Specific criteria to be evaluated:

1. The offeror will be evaluated on how well it demonstrated an understanding of and capability to meet the staffing requirements stated in Section 1-4 and section 4-5 (in its entirety) of the corresponding PWS.
2. Offeror will be evaluated on solutions or incentives offered to minimize turnover.
3. Offeror will also be evaluated based on specific solutions, resources or incentives proposed to maximize competency and proficiency of the instructor cadre.
4. Evaluation will consider the offeror's plan to replace qualified instructors with equally qualified instructors within the specified timeframe when necessary. Specifically:
 - a. Achieve and maintain 100% fully qualified instructors on deck throughout the life of the task order.
 - b. Achieve and maintain <10% Instructor turnover within any given (6) month period.
 - c. Identify specific solutions or incentives to maintain 100% compliance with Instructor Replacement requirement of Sect. 3-1.7.1.
5. Demonstrates the offeror's ability to retain qualified candidates and reduce turnover with proven low attrition rates over the last three (3) years for similar work.

Sub-factor III - Mobilization Plan:

Offeror's mobilization plan, as it relates to Section 7 of the PWS, will be evaluated on its feasibility, its comprehensiveness, and how well the offeror demonstrates its capability to meet the requirements outlined in Section 7 of the PWS and achieve full performance by the end of the mobilization period. Offeror's mobilization plan will be evaluated on its identified risks and proposed techniques and actions to mitigate those risks.

A combined Technical/Risk rating will be utilized in the evaluation of the Non-Price Proposal Factor I consisting of Factor I - Performance and Management Approach, Sub-factor II - Staffing Approach, and Sub-factor III - Mobilization Plan. The combined technical/risk rating includes a consideration of risk in conjunction with the significant strengths, strengths, weaknesses, significant weaknesses, deficiencies, and uncertainties in

determining technical ratings. Combined technical/risk evaluations will utilize the technical/risk ratings listed in the table entitled "Combined Technical/Risk Table 1" below.

Note: A rating of "Marginal" for any factor or sub-factor means that the offeror's proposal is not awardable without a change or changes to the offeror's proposal. An offer which includes a "Marginal" rating is not eligible for award if award is made on initial offers. Offerors that receive a "Marginal" rating are considered to be susceptible to correction if the Contracting Officer determines that a discussion is appropriate and said discussion is conducted.

Note: Offerors receiving a rating of "Unacceptable" for any factor or sub-factor will not be considered for an award and will not be further evaluated. Offerors simply providing general statements or paraphrasing/parroting the PWS in whole or in part may result in a rating of "Unacceptable."

Factor II - Past Performance:

The past performance evaluation factor assesses the degree of confidence the Government has in an offeror's ability to meet the contract's requirements based on the quality of a demonstrated record of recent and relevant performance. There are three aspects to the past performance evaluation: recency, relevancy, and quality. These are combined to establish a single performance confidence assessment rating for each offeror.

Past Performance Recency: Recency is the first aspect of the past performance evaluation and is the time period during which past performance references are considered relevant. Recency is critical to establishing the relevancy of past performance information. For purposes of this solicitation, recent past performance is performance that has taken place within five (5) years as of the issuance date of this solicitation. Performance outside of this stated period will not be considered for evaluation purposes.

Past Performance Relevancy: The past performance relevancy ratings are defined in table identified as "Past Performance Relevancy Ratings Table 3" below. Regarding relevancy, each past performance reference under each offeror's Past Performance submission will be evaluated to determine its scope, and magnitude relative to the instant requirement. The following definitions will apply to this evaluation:

- Scope: Experience in the areas described in the PWS.
- Magnitude: The similarity of the dollar value of actually performed work that exists between the PWS and the offeror's referenced contracts during the stated five-year period established by the solicitation.

Past Performance Quality: The third aspect of the past performance evaluation is to establish the overall quality of the offeror's past performance. The Government will review all past performance information collected and determine the quality of the offeror's performance, including general trends and usefulness of the information, and will incorporate this into the performance confidence assessment.

Past Performance Confidence Assessment: The overall assigned rating for past performance will be the Past Performance Confidence Assessment rating, defined in table identified as "Past Performance Confidence Assessment Ratings Table 4" below. The assignment of this rating will be based on the overall quality of the recent and relevant past performance and will also consider the source of the information, the context of the data, and general trends in the offeror's performance. The quality of performance under a past performance reference that has no relevance to the instant requirement will not be considered in the overall assessment of past performance confidence. Evaluation will focus only on work already performed. Work yet-to-be performed and work not reflecting one year of completed performance by the solicitation closing date will not be considered.

In the case of offerors for which there is no information on past contract performance or where past contract performance information is not available, the offeror may not be evaluated favorably or unfavorably on the past performance factor. In this case, the offeror's past performance is unknown and assigned a performance confidence rating of "Neutral Confidence." Although an offeror that lacks recent, relevant past performance may not be rated favorably or unfavorably with regard to past performance, the Government may determine that a "Substantial Confidence" or "Satisfactory Confidence" past performance rating provides better value to the Government than a "Neutral Confidence" past performance rating.

In order to evaluate Past Performance, the Government may also utilize existing data sources, including the Contractor Performance Assessment Reporting System (CPARS), the Federal Awardee Performance and Integrity Information System (FAPIIS), the Electronic Subcontract Reporting System (eSRS), or other databases; communication with points of contact in the offeror's customer's organization, which could include private sector requirements and contracts personnel, Administrative Contracting Officers, Defense Contract Management Agency (DCMA) personnel, Procuring Contracting Officers, Contracting Officer's Representatives, and other Government activity requirements personnel. The Government may verify past performance information. The Government may contact some or all of the references provided, as appropriate, and may collect information through questionnaires, telephone interviews, and existing data sources. The Government reserves the right to obtain information for use in the evaluation of past performance from any and all sources, including sources outside of the Government. This information will be used for the evaluation of past performance.

The past performance factor evaluation and past performance confidence assessment rating is separate and distinct from the contracting officer's responsibility determination. The assessment of the offeror's past performance will be used as a means of evaluating the relative capability of the offeror and other competitors to successfully meet the requirements of the solicitation.

Note: A rating of "Limited Confidence" for the past performance factor means that the offeror's proposal is not awardable without a change or changes to the offeror's proposal. A proposal that includes a "Limited Confidence" rating is considered to be susceptible to correction if the contracting officer determines that a discussion (pursuant to FAR 15.306) is appropriate and said discussion is conducted. A rating of "No Confidence" for the past performance factor means that the offeror's proposal is not awardable, is not susceptible to correction, and will not be further evaluated.

Volume II: Price Proposal Evaluation Criteria

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Factor III: Price Proposal

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Price will be evaluated on the basis of price reasonableness in accordance with FAR 15.404-1. The Government will evaluate offers for award purposes by adding the total price for the mobilization, base period, and option periods.

The common amounts provided in the "Instructions to Offerors" for Travel, and any applicable G&A and Overhead, shall be utilized for evaluation purposes in determining the total price for the entire contract.

Offerors responding to this solicitation are advised that, prior to award, the government may request offerors to submit information/data to support price reasonableness such as copies of paid invoices for the same or similar items, sales history for the same or similar items, price list with effective date and/or copies of catalog pages along with any applicable discounts. Failure to submit the requested information may result in disqualification of the submitted offer.

Although price is considered in a manner that makes it less important than the Non-Price factor, it has the potential to become more significant during the evaluation process. The degree of importance of price will increase with the degree of equality of the proposals in relation to the other factors on which selection is to be based. The importance of price will also increase when a proposal's price is so significantly high as to diminish the value to the Government that might be gained under the other aspects of the offer. If, at any stage of the evaluation, all offerors are determined to have submitted equal, or virtually equal, non-price proposals, price could become the factor in determining which offerors shall receive the award. The Government may evaluate any and all information submitted by the vendor to support the reasonableness of prices proposed. The method of evaluation used by the Contracting Officer is solely within the discretion of the Contracting Officer.

Options, will be evaluated pursuant to solicitation provision FAR 52.217-5, Evaluation of Options. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

A written notice of award or acceptance of an offer e-mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

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Rating Tables

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Technical / Risk Ratings Tables

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The below rating descriptions will be used during the evaluation for Factor I - Technical Approach consisting of Sub-factor I - Performance and Management Approach, Sub-factor II - Staffing Approach, and Sub-factor III - Mobilization Plan.

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Combined Technical/Risk Table 1

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Adjectival Rating	Description
Outstanding	Proposal demonstrates an exceptional approach and understanding of the requirements and contains multiple strengths and/or at least one significant strength, and risk of unsuccessful performance is low.
Good	Proposal indicates a thorough approach and understanding of the requirements and contains at least one strength or significant strength, and risk of unsuccessful performance is low to moderate.
Acceptable	Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate.
Marginal	Proposal has not demonstrated an adequate approach and understanding of the requirements, and/or risk of unsuccessful performance is high.
Unacceptable	Proposal does not meet requirements of the solicitation and, thus, contains one or more deficiencies and is unawardable, and/or risk of performance is unacceptably high.

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Technical Risk Table 2

Rating	Description
Low	Proposal may contain weakness/weaknesses which have low potential to cause disruption of schedule, increased cost, or degradation of performance. Normal contractor emphasis and normal Government monitoring will likely be able to overcome any difficulties.
Moderate	Proposal contains a significant weakness or combination of weaknesses which may have a moderate potential to cause disruption of schedule, increased cost, or degradation of performance. Special contractor emphasis and close Government monitoring will likely be able to overcome any difficulties.

High	Proposal contains a significant weakness or combination of weaknesses which is likely to have high potential to cause significant disruption of schedule, increased cost, or degradation of performance. Special contractor emphasis and close Government monitoring will unlikely be able to overcome any difficulties.
Unacceptable	Proposal contains a deficiency or a combination of significant weaknesses that causes an unacceptable level of risk of unsuccessful performance.

DEFINITIONS:

Strength - an aspect of an offeror's proposal with merit or will exceed specified performance or capability requirements to the advantage of the Government during contract performance.

Significant Strength - an aspect of an Offeror's proposal with appreciable merit or will exceed specified performance or capability requirements to the considerable advantage of the Government during contract performance.

Weakness - a flaw in the proposal that increases the risk of unsuccessful contract performance.

Significant Weakness - a flaw that appreciably increases the risk of unsuccessful contract performance.

Deficiency - Deficiency is any part of an offer that does not conform to a material requirement of a RFP. A material requirement is one that affects price, quantity, quality, or delivery, or that the RFP requires to be met at the time of proposal submission.

Risk - (as it pertains to source selection) The potential for unsuccessful contract performance. The consideration of risk assesses the degree to which an offeror's proposed approach to achieving the technical factor or sub-factor may involve risk of disruption of schedule, degradation of performance, the need for increased Government oversight, and the likelihood of unsuccessful contract performance.

Uncertainty - aspect of a non-price factor proposal for which the intent of the offer is unclear (e.g., more than one way to interpret the offer or inconsistencies in the proposal indicating that there may have been an error, omission, or mistake)

Past Performance Relevancy Ratings Table 3

These ratings will be used in the evaluation of Factor II - Past Performance.

Rating	Description
Very Relevant	Present/past performance effort involved essentially the same scope and magnitude of effort this solicitation requires.
Relevant	Present/past performance effort involved similar scope and magnitude of effort this solicitation requires.
Somewhat Relevant	Present/past performance effort involved some of the scope and magnitude of effort this solicitation requires.

Not Relevant	Present/past performance effort involved little or none of the scope and magnitude of effort this solicitation requires.
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Past Performance Confidence Assessment Ratings Table 4

These ratings will be used in the evaluation of Factor II - Past Performance.

Rating	Description
Substantial Confidence	Based on the offeror's recent/relevant performance record, the Government has a high expectation that the offeror will successfully perform the required effort.
Satisfactory Confidence	Based on the offeror's recent/relevant performance record, the Government has a reasonable expectation that the offeror will successfully perform the required effort.
Neutral Confidence	No recent/relevant performance record is available or the offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned. The offeror may not be evaluated favorably or unfavorably on the factor of past performance.
Limited Confidence	Based on the offeror's recent/relevant performance record, the Government has a low expectation that the offeror will successfully perform the required effort.
No Confidence	Based on the offeror's recent/relevant performance record, the Government has no expectation that the offeror will be able to successfully perform the required effort.

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.217-5	Evaluation of Options. (Deviation 2026-O0038)	Feb 2026		